

AGREEMENT TO FURNISH INTELLIGENT TRANSPORTATION SYSTEM SOFTWARE/HARDWARE TO THE ALLEGANY COUNTY TRANSIT SYSTEM OF ALLEGANY COUNTY, MARYLAND

ARTICLE I: SCOPE

For the consideration set forth in Article V of this Agreement, the firm of Information Technologies Curves Incorporated t/a IT Curves, hereinafter referred to as “CONTRACTOR,” agrees to provide the system referred by RFP as AVL-APC which includes Reservation, Scheduling, and Dispatch (RSD) Software System for Fixed Route and Demand Response as well as the Automatic Passenger Count, APC, to the Allegany County Transit System of Allegany County, Maryland, hereinafter referred to as “COUNTY.”

This Agreement incorporates the promises, representations, and obligations set forth in the following Order of Precedence:

- This Agreement;
- Exhibit A: Modifications to this agreement as may be added during negotiation or future modifications of this Agreement;
- Exhibit B: Required Federal Clauses (From RFP);
- Exhibit C: Price and Payment Milestones Schedule.
- Exhibit D: Compliance matrix (Proposal Section 6.1.12)
- Exhibit E: Maintenance Plan (Proposal Section 8)
- Exhibit F: System Installation and Implementation (Proposal Sections 6.5-6.8)
- Exhibit G: Optional features and prices selected at time of contract

SYSTEM as used in this Agreement shall mean that as described in Section 6.4.12 Compliance matrix of Exhibit D, Compliance matrix.

IMPLEMENTATION SERVICES as used in this Agreement shall mean the implementation of the SYSTEM that is described Sections 6.5 through 6.8 of Exhibit F, System Installation and Implementation, and as billed pursuant to Exhibit C, Price and Payment Milestones Schedule.

POST-IMPLEMENTATION SERVICES as used in this Agreement shall mean that as described on Exhibit E: Maintenance Plan and as billed pursuant to Exhibit C, Price and Payment Milestones Schedule.

IMPLEMENTATION TERM as per this Agreement shall mean the period CONTRACTOR is required to complete configuration, installation, integration, delivery, training, and acceptance testing of the SYSTEM, as described in Section 6.5 Exhibit D, Compliance matrix. CONTRACTOR will deliver all equipment and use licenses during the IMPLEMENTATION TERM. The IMPLEMENTATION TERM will be approximately 2 to 3 months and will be agreed upon with the COUNTY.

POST-IMPLEMENTATION TERM shall mean the period beginning upon acceptance or upon taking beneficial use of System services by COUNTY, whichever comes earlier, and ending on the fifth anniversary of the beginning date of the POST-IMPLEMENTATION TERM (unless this Agreement is terminated sooner pursuant to Article IX). During this POST-IMPLEMENTATION TERM, the CONTRACTOR will provide annually billed POST IMPLEMENTATION SERVICES. All licenses granted to the COUNTY to use the SYSTEM expire immediately after the end of the POST-IMPLEMENTATION TERM (unless this Agreement is terminated sooner pursuant to Article IX. In such case, all licenses granted to the COUNTY to use the SYSTEM will expire when this Agreement is terminated).

EFFECTIVE DATE OF AGREEMENT shall mean the last date a party to the Agreement executes this Agreement.

In consideration of the mutual promises contained herein, it is agreed to as follows, and is effective upon its execution by and between both parties hereto.

ARTICLE II: RESPONSIBILITIES OF CONTRACTOR

A. Notice to Proceed. CONTRACTOR will begin work on the IMPLEMENTATION SERVICES after the EFFECTIVE DATE OF AGREEMENT and after receipt of a Notice to Proceed from the COUNTY. CONTRACTOR will begin work on the POST-IMPLEMENTATION SERVICES after the end of the IMPLEMENTATION TERM. Authorization to proceed on additional services not defined in Article I will be in the form of a modification or amendment as defined in Article IV.

B. Level of Competence. CONTRACTOR will provide the degree of skill and diligence normally employed by professionals performing the same or similar services at the time the services are performed, and the professional and technical adequacy and accuracy of designs, drawings, specifications, documents, and other work products furnished under this agreement. CONTRACTOR must, at all times during the term of this Agreement, be duly licensed to perform the Work, and if there is no licensing requirement for the profession or Work, be duly qualified and competent. CONTRACTOR will demonstrate the ability to meet or exceed all federal, state, and local laws, codes, and regulations.

C. Compliance with Law. CONTRACTOR covenants and agrees to comply with all of the obligations and conditions applicable to public contracts of this type, including the required Federal Clauses. Exhibit B. In addition, CONTRACTOR covenants and agrees that in the performance of its duties hereunder, it will comply with all other state and federal requirements applicable to contracts of this type. If any provision of this Agreement will be deemed to be not in compliance with any statute or rule of law, such provision will be deemed modified to ensure compliance with said statute or rule of law.

D. Taxpayer Identification Number. CONTRACTOR agrees to complete a Request for Taxpayer Identification Number and Certification (W-9) as a condition of the COUNTY'S obligation to make payment.

E. Debarment and Suspension. CONTRACTOR certifies that during the term of an award of contract by COUNTY resulting from this procurement process, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation by any federal department or agency.

ARTICLE III: RESPONSIBILITY OF COUNTY

A. Authorization to Proceed. COUNTY will authorize CONTRACTOR upon EFFECTIVE DATE OF AGREEMENT to start work on IMPLEMENTATION SERVICES. COUNTY will authorize CONTRACTOR upon the ending of the IMPLEMENTATION TERM to start work on the POST-IMPLEMENTATION SERVICES.

B. Access to Records, Facilities, and Property. COUNTY will comply with reasonable requests from CONTRACTOR for inspection or access to COUNTY'S records, facilities, and properties by providing any and all information within its possession or control that may be reasonably helpful in the performance of the services provided herein.

C. Timely Review. COUNTY will examine all studies, reports, specifications, proposals, and other documents presented by CONTRACTOR, obtain advice of an attorney, accountant, auditor, and other Contractors as COUNTY deems appropriate for such examination and render in writing decisions pertaining thereto in a timely manner so as not to unreasonably delay the services of CONTRACTOR.

D. Assistance. The COUNTY will assist the CONTRACTOR by providing any and all information within its possession or control that may be reasonably helpful in the performance of the services provided herein. Unless modified in writing as set forth in Article IV by the parties hereto, the duties of the CONTRACTOR and the COUNTY will not be construed to exceed those services and duties specifically set forth in this Agreement.

ARTICLE IV: MODIFICATIONS

COUNTY or CONTRACTOR will not make modifications in this Agreement except in writing as an amendment to the agreement. Said modifications will be agreed to by both parties, with scope of work, schedule, and compensation to be negotiated at the time the modification is proposed by either party. Modifications that do not meet these requirements will not be binding, and no further compensation will be allowed for any work performed.

ARTICLE V: COMPENSATION/TERM

COUNTY agrees to pay CONTRACTOR for the goods and services procured in Article I in accordance with the compensation provisions described in this Agreement and the deliverables set forth in the Project Schedule and Cost Proposal, Exhibit C. The term of this agreement shall

be IMPLEMENTATION TERM and the POST-IMPLEMENTATION TERM (unless this Agreement is terminated sooner pursuant to Article IX).

Invoices must be directed to Allegany County Government, Department of Public Works, Attention: Accounts Payable and Elizabeth Robinson Harper, Transit Chief at 1000 Lafayette Avenue, Cumberland, MD 21502. Or invoices may be emailed to erobison-harper@alleganygov.org.

If payment is not made within 30 days, interest on the unpaid balance will accrue beginning on the 31st day at the rate of Seven percent (7 %) per month. Such interest is due and payable when the overdue payment is made. In the event of a contested billing, only the portion contested will be withheld, and the undisputed portion will be paid in accordance with this Article V.

ARTICLE VI: ASSIGNMENT

This Agreement is to be binding upon the heirs, successors, and assigns of the parties hereto and is not to be assigned by either party without first obtaining the written consent of the other. No assignment of this Agreement will be effective until the assignee assumes in writing the obligations of the assigning party and delivers such written assumption to the other original party to this Agreement.

Use of subcontractors by the CONTRACTOR or subsidiary, or affiliate Firms of the CONTRACTOR for technical or professional services will not be considered an assignment of a portion of this Agreement, and the CONTRACTOR will remain fully responsible for the work performed, whether such performance is by the CONTRACTOR or subcontractors. CONTRACTOR has notified the COUNTY that its subcontractor IRIS Inc. is performing services as listed on CONTRACTOR'S Proposal Response. COUNTY approves such use of IRIS Inc.

ARTICLE VII: INTEGRATION

These terms and conditions and the attachments represent the entire understanding of COUNTY and CONTRACTOR as to those matters contained herein. No prior oral or written understanding will be of any force or effect with respect to those matters covered herein. The agreement may not be modified or altered except in writing as specified in Article IV.

ARTICLE VIII: SUSPENSION OF WORK

The COUNTY may suspend all or a portion of the work under this Agreement upon 14 calendar days' notice to the CONTRACTOR. The CONTRACTOR may suspend work on the project in the event the COUNTY does not pay invoices when due. The time for completion of the work will be extended by the number of days work is suspended. In the event that the period of suspension exceeds 90 days, the terms of this Agreement are subject to renegotiation and both parties are granted the option to terminate work on the suspended portion of the project, in accordance with Article XI.

ARTICLE IX: EARLY TERMINATION

A. Either party may terminate this Agreement in the event of a material breach by the other party that is not cured. Before termination is permitted, the party seeking termination must give the other party written notice of the breach, its intent to terminate, and 60 working days to cure the breach. If the breach is not cured within cure period, the party seeking termination may terminate immediately by giving written notice that the Agreement is terminated.

B. If no notice of termination is given, the relationships and obligations created by this Agreement, and the COUNTY'S license to use the SYSTEM will end in accordance with the POST-IMPLEMENTATION TERM.

ARTICLE XII: REMEDIES AND PAYMENT ON EARLY TERMINATION

A. If the COUNTY terminates during the IMPLEMENTATION TERM pursuant to Article IX, the COUNTY will pay the CONTRACTOR for work performed in accordance with the Agreement prior to the termination date.

B. If the COUNTY terminates this Agreement during the POST-IMPLEMENTATION TERM for any reason, the COUNTY will pay for, and CONTRACTOR will provide, one year of POST IMPLEMENTATION SERVICES.

ARTICLE XIII: NOTICES

All notices and demands of a legal nature that either party may be required or may desire to serve upon the other party must be in writing and will be served upon the other party by personal service, by email followed by mail delivery of the notice, by overnight courier with proof of receipt, or by certified mail, return receipt requested, or by postage prepaid. Notices must be addressed as follows:

COUNTY:

Adam Patterson, P.E., Director of Public Works
Allegany County Government
701 Kelly Road
Cumberland, MD 21502
adam.patterson@alleganygov.org

With copy to:

Elizabeth Harper, Transit Division Chief
Allegany County Transit
1000 Lafayette Avenue
Cumberland, MD 21502
erobison-harper@alleganygov.org

CONTRACTOR:

Matthew Mohebbi, CEO
Information Technologies Curves
8201 Snouffer School,
Gaithersburg, MD 20879
mmohebbi@itcurves.net

With copy to:

James Rubin, Esquire
600 Jefferson Plaza, Suite 204
Rockville, MD 20852
jrubin@rubinemploymentlawfirm.com

ARTICLE XIV: FORCE MAJEURE

Neither the COUNTY nor the CONTRACTOR will hold the other responsible for damages or delay in performance caused by acts of God, strikes, lockouts, accidents, or other events beyond the control of the other party or the other party's employees and agents. The Parties hereby acknowledge that while current events related to the COVID-19 pandemic are known, future impacts of the outbreak are unforeseeable and shall be considered a Force Majeure Event to the extent that they prevent the performance of a Party's obligations under this Agreement.

ARTICLE XV: DISPUTE COSTS

In the event either party brings action to enforce the terms of this Agreement or to seek damages for its breach or arising out of any dispute concerning the terms and conditions hereby created, the prevailing party will be entitled to an award of its reasonable attorney fees, costs, and expenses, including expert witness fees, incurred therein, including such costs and fees as may be required on appeal.

ARTICLE XVI: CONFLICT AND SEVERABILITY

In the event of any inconsistency between the terms of this Agreement and the terms listed in any additional attachments to this Agreement, the terms of this Agreement will control. Any provision of this document found to be prohibited by law will be ineffective to the extent of such prohibition without invalidating the remainder of the document.

ARTICLE XVII: CONSTRUCTION

The Parties acknowledge that the parties and their counsel have reviewed this Agreement, and that the normal rule of construction to the effect that any ambiguities are to be resolved against the drafting Party will not be employed in the interpretation of this Agreement or any exhibits, or amendments hereto.

ARTICLE XVIII: COURT OF JURISDICTION

The laws of the State of Maryland will govern the validity of this Agreement, its interpretation and performance, and other claims related to it. Venue for litigation will be in the Circuit Courts in and for the State of Maryland.

ARTICLE XIX: EFFECTIVE DATE

The date this Agreement is signed by the last party to sign it (as indicated by the date associated with that party's signature) will be deemed the date of this Agreement. If a party signs but fails to date a signature, the date that the other party receives the signing party's signature will be deemed to be the date that the signing party signed this Agreement and the other party may inscribe that date as the date associated with the signing party's signature; provided, however, if only one party dated this Agreement, then such date is the date of this Agreement.

ARTICLE XXI: ELECTRONIC SIGNATURES

Any signature (including any electronic symbol or process attached to, or associated with, a contract or other record and adopted by a Person with the intent to sign, authenticate or accept such contract or record) hereto or to any other certificate, agreement or document related to this transaction, and any contract formation or recordkeeping through electronic means will have the same legal validity and enforceability as a manually executed signature or use of a paper-based recordkeeping system to the fullest extent permitted by applicable law.

Allegany County, Department of Public Works


BY: Elizabeth Harper (Jul 2, 2022 15:27 EDT)

Print Name: Elizabeth Harper

DATED: Jul 2, 2022

Information Technologies Curves Incorporated


BY: _____

Print Name: Matthew Mohebbi

DATED: Jun 27, 2022

Exhibit A: Modifications to this Agreement

Modifications to this Agreement as may be added during negotiation or in the future will be inserted here if any additional options or modification are added as a part of the contract.

Otherwise, this Exhibit is left blank.

Exhibit B: Required Federal Clauses (from the RFP)

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ATTACHMENT C

REQUIRED FEDERAL CLAUSES

2 BUY AMERICA REQUIREMENTS

49 U.S.C. 5323(j)

49 U.S.C. 5323(h)

49 CFR Part 661

Applicability to Contracts: The Buy America requirements apply to the following types of contracts: Construction Contracts and Acquisition of Goods or Rolling Stock (valued at more than \$100,000).

Flow down Requirements: The Buy America requirements flow down from NCTD to first tier Consultant, who are responsible for ensuring that lower tier consultants and sub-consultants are in compliance.

Buy America - The Consultant agrees to comply with 49 U.S.C. 5323(j) as amended by MAP-21, 49 U.S.C. 5323(h), 49 CFR Part 661, and FAST Act (Pub. L. 114-94) which provide that Federal funds may not be obligated unless steel, iron, and manufactured products used in FTA-funded projects are produced in the United States, unless a waiver has been granted by FTA or the product is subject to a general waiver. General waivers are listed in 49 CFR 661.7 and was amended by Section 3011 of the FAST Act (Pub. L. 114-94). Separate requirements for rolling stock are set out at 5323(j)(2)(C) and 49 CFR 661.11. Rolling stock not subject to a general waiver must be manufactured in the United States and have a sixty percent (60%) domestic content for FY16 & FY17; sixty-five percent (65%) domestic content for FY18 & FY19; and seventy percent (70%) domestic content for FY20 & beyond.

General waivers for small purchases do not apply to Consultants equipment purchases when Consultant's contract value exceeds \$150,000 in value. Consultant must submit to NCTD the appropriate Buy America certification with all bids on FTA-funded contracts, except those subject to a general waiver. Bids or offers that are not accompanied by a completed Buy America certification must be rejected as non-responsive. This requirement does not apply to lower tier sub-consultants.

EXCEPTION SPECIFIC TO THIS PROCUREMENT: NCTD is seeking Buy America compliant [bids/proposals] with this [RFP/IFB/RFQ]. However, NCTD holds a FTA Non-Availability Waiver that is applicable to this procurement. Accordingly, the inability to certify Buy America compliance on this procurement shall not result in the [bid/proposal] being deemed non-responsive. The requirement for the proposal to include a completed Buy America Certificate, however, is not waived by this exception.

6. ENERGY CONSERVATION REQUIREMENTS

42 USC. 6321, et seq.

49 CFR Part 18

Applicability to Contracts

The Energy Conservation requirements are applicable to all contracts.

Flow Down

The Energy Conservation requirements extend to all third-party contractors and their contracts at every tier and subrecipients and their sub agreements at every tier.

Model Clause/Language

No specific clause is recommended in the regulations because the Energy Conservation requirements are so dependent on the state energy conservation plan. The following language has been developed by FTA:

Energy Conservation - The Contractor agrees to comply with mandatory standards and policies relating to energy efficiency which are contained in the state energy conservation plan issued in compliance with the Energy Policy and Conservation Act.

7. CLEAN WATER REQUIREMENTS

33 USC. 1251

Applicability to Contracts

The Clean Water requirements apply to each Contract and subcontract which exceeds \$100,000.

Flow Down

The Clean Water requirements flow down to FTA recipients and subrecipients at every tier.

Model Clause/Language

While no mandatory clause is contained in the Federal Water Pollution Control Act, as amended, the following language developed by FTA contains all the mandatory requirements:

Clean Water - (1) The Contractor agrees to comply with all applicable standards, orders or regulations issued pursuant to the Federal Water Pollution Control Act, as amended, 33 USC. 1251 et seq. The Contractor agrees to report each violation to the Purchaser and understands and agrees that the Purchaser will, in turn, report each violation as required to assure notification to FTA and the appropriate EPA Regional Office.

(2) The Contractor also agrees to include these requirements in each subcontract exceeding \$100,000 financed in whole or in part with Federal assistance provided by FTA.

10. LOBBYING

31 USC. 1352

49 CFR Part 19

49 CFR Part 20

Applicability to Contracts

The Lobbying requirements apply to Construction/Architectural and Engineering/Acquisition of Rolling Stock/Professional Service Contract/Operational Service Contract/Turnkey contracts.

Flow Down

The Lobbying requirements mandate the maximum flow down, pursuant to Byrd Anti-Lobbying Amendment, 31 USC. § 1352(b)(5) and 49 CFR Part 19, Appendix A, Section 7.

Mandatory Clause/Language

Clause and specific language therein are mandated by 49 CFR Part 19, Appendix A.

Modifications have been made to the Clause pursuant to Section 10 of the Lobbying Disclosure Act of 1995, PL 104-65 [to be codified at 2 USC. § 1601, *et seq.*]

- Lobbying Certification and Disclosure of Lobbying Activities for third party contractors are mandated by 31 USC. 1352(b)(5), as amended by Section 10 of the Lobbying Disclosure Act of 1995, and DOT implementing regulation, "New Restrictions on Lobbying," at 49 CFR § 20.110(d)

- Language in Lobbying Certification is mandated by 49 CFR Part 19, Appendix A, Section 7, which provides that contractors file the certification required by 49 CFR Part 20, Appendix A.

Modifications have been made to the Lobbying Certification pursuant to Section 10 of the Lobbying Disclosure Act of 1995.

- Use of "Disclosure of Lobbying Activities," Standard Form-LLL set forth in Appendix B of 49 CFR Part 20, as amended by "Government-wide Guidance For New Restrictions on Lobbying," 61 Fed. Reg. 1413 (1/19/96) is mandated by 49 CFR Part 20, Appendix A.

Byrd Anti-Lobbying Amendment, 31 USC. 1352, as amended by the Lobbying Disclosure Act of 1995, PL 104-65 [to be codified at 2 USC. § 1601, *et seq.*] - Contractors who apply or bid for an award of \$100,000 or more shall file the certification required by 49 CFR part 20, "New Restrictions on Lobbying." Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 USC. 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995, who has made lobbying contacts on

its behalf with non-Federal funds with respect to that Federal Contract, grant, or award covered by 31 USC. 1352. Such disclosures are forwarded from tier to tier, to the Recipient.

APPENDIX A, 49 CFR PART 20--CERTIFICATION REGARDING LOBBYING

Certification for Contracts, Grants, Loans, and Cooperative Agreements

(To be submitted with each bid or offer exceeding \$100,000)

The undersigned [Contractor] certifies, to the best of his or her knowledge and belief, that:

(1) No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative Agreement.

(2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for making lobbying contacts to an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal Contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form--LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions [as amended by "Government-wide Guidance for New Restrictions on Lobbying," 61 Fed. Reg. 1413 (1/19/96). Note: Language in paragraph (2) herein has been modified in accordance with Section 10 of the Lobbying Disclosure Act of 1995 (PL 104-65, to be codified at 2 USC 1601, *et seq.*)]

(3) The undersigned shall require that the language of this certification be included in the award documents for all sub-awards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all sub-recipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by 31 USC. § 1352 (as amended by the Lobbying Disclosure Act of 1995). Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

[Note: Pursuant to 31 USC. § 1352(c)(1)-(2)(A), any person who makes a prohibited expenditure or fails to file or amend a required certification or disclosure form shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such expenditure or failure.]

The Contractor, _____, certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Contractor understands and agrees that the provisions of 31 USC. A 3801, *et seq.*, apply to this certification and disclosure if any.

_____ Signature of Contractor's Authorized Official

_____ Name and Title of Contractor's Authorized Official

_____ Date

11. ACCESS TO RECORDS AND REPORTS

49 USC. 5325

18 CFR 18.36 (i)

49 CFR 633.17

Applicability to Contracts

Reference Chart "Requirements for Access to Records and Reports by Type of Contracts"

Flow Down

FTA does not require the inclusion of these requirements in subcontracts.

Model Clause/Language

The specified language is not mandated by the statutes or regulations referenced, but the language provided paraphrases the statutory or regulatory language.

Access to Records - The following access to records requirements apply to this Contract:

1. Where the Purchaser is not a State but a local government and is the FTA Recipient or a subgrantee of the FTA Recipient in accordance with 49 CFR 18.36(i), the Contractor agrees to provide the Purchaser, the FTA Administrator, the Comptroller General of the United States or any of their authorized representatives access to any books, documents, papers and records of the Contractor which are directly pertinent to this Contract for the purposes of making audits, examinations, excerpts, and transcriptions. The contractor also agrees, pursuant to 49 CFR 633.17 to provide the FTA Administrator or his authorized representatives, including any PMO Contractor access to Contractor's records and construction sites pertaining to a major capital project, defined at 49 USC. 5302(a)1, which is receiving federal financial assistance through the programs described at 49 USC. 5307, 5309, or 5311.

2. Where the Purchaser is a State and is the FTA Recipient or a subgrantee of the FTA Recipient in accordance with 49 CFR 633.17, Contractor agrees to provide the Purchaser, the FTA Administrator or his authorized representatives, including any PMO Contractor, access to the _____

Contractor's records and construction sites pertaining to a major capital project, defined at 49 USC. 5302(a)1, which is receiving federal financial assistance through the programs described at 49 USC. 5307, 5309, or 5311. By definition, a major capital project excludes contracts of less than the simplified acquisition threshold currently set at \$100,000.

3. Where the Purchaser enters into a negotiated contract for other than a small purchase or under the simplified acquisition threshold and is an institution of higher education, a hospital or other non-profit organization and is the FTA Recipient or a subgrantee of the FTA Recipient in accordance with 49 CFR 19.48, Contractor agrees to provide the Purchaser, FTA Administrator, the Comptroller General of the United States or any of their duly authorized representatives with access to any books, documents, papers and record of the Contractor which are directly pertinent to this Contract for the purposes of making audits, examinations, excerpts, and transcriptions.

4. Where any Purchaser, which is the FTA Recipient or a subgrantee of the FTA Recipient in accordance with 49 USC. 5325(a) enters into a contract for a capital project or improvement (defined at 49 USC 5302(a)1) through other than competitive bidding, the Contractor shall make available records related to the Contract to the Purchaser, the Secretary of Transportation and the Comptroller General or any authorized officer or employee of any of them for the purposes of conducting an audit and inspection.

5. The Contractor agrees to permit any of the foregoing parties to reproduce by any means whatsoever or to copy excerpts and transcriptions as reasonably needed.

6. The Contractor agrees to maintain all books, records, accounts, and reports required under this Contract for a period of not less than three years after the date of termination or expiration of this Contract, except in the event of litigation or settlement of claims arising from the performance of this Contract, in which case Contractor agrees to maintain same until the Purchaser, the FTA Administrator, the Comptroller General, or any of their duly authorized representatives, have disposed of all such litigation, appeals, claims or exceptions related thereto. Reference 49 CFR 18.39(i)(11).

7. FTA does not require the inclusion of these requirements in subcontracts.

Requirements for Access to Records and Reports by Types of Contract

Contract Characteristics	Operational Service Contract	Turnkey	Construction	Architectural Engineering	Acquisition of Rolling Stock	Professional Services
I <u>State Grantees</u>						
a. Contracts below SAT (\$100,000)	None	Those imposed on state pass-thru to Contractor	None	None	None	None
b. Contracts above \$100,000/Capital Projects	None unless ¹ non-competitive award		Yes, if the non-competitive award or if funded thru ² 5307/5309/5311	None unless the non-competitive award	None unless the non-competitive award	None unless the non-competitive award
II <u>Non-State Grantees</u>						
a. Contracts below SAT (\$100,000)	Yes ³	Those imposed on non-state Grantee pass-thru to Contractor	Yes	Yes	Yes	Yes
b. Contracts above \$100,000/Capital Projects	Yes ³		Yes	Yes	Yes	Yes

Sources of Authority:

¹ 49 USC 5325 (a)

² 49 CFR 633.17

³ 18 CFR 18.36 (i)

12. FEDERAL CHANGES

49 CFR Part 18

Applicability to Contracts

The Federal Changes requirement applies to all contracts.

Flow Down

The Federal Changes requirement flows down appropriately to each applicable changed requirement.

Model Clause/Language

No specific language is mandated. The following language has been developed by FTA.

Federal Changes - Contractor shall at all times comply with all applicable FTA regulations, policies, procedures, and directives, including without limitation those listed directly or by reference in the Master Agreement between Purchaser and FTA, as they may be amended or promulgated from time to time during the term of this Contract. Contractor's failure to so comply shall constitute a material breach of this Contract.

14. CLEAN AIR
42 USC. 7401 et seq
40 CFR 15.61
49 CFR Part 18

Applicability to Contracts

The Clean Air requirements apply to all contracts exceeding \$100,000, including indefinite quantities where the amount is expected to exceed \$100,000 in any year.

Flow Down

The Clean Air requirements flow down to all subcontracts, which exceed \$100,000.

Model Clauses/Language

No specific language is required. FTA has proposed the following language.

Clean Air - (1) The Contractor agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act, as amended, 42 U.S.C. §§ 7401, et seq. The Contractor agrees to report each violation to the Purchaser and understands and agrees that the Purchaser will, in turn, report each violation as required to assure notification to FTA and the appropriate EPA Regional Office.

(2) The Contractor also agrees to include these requirements in each subcontract exceeding \$100,000 financed in whole or in part with Federal assistance provided by FTA.

19. NO GOVERNMENT OBLIGATION TO THIRD PARTIES

Applicability to Contracts

Applicable to all contracts.

Flow Down

Not required by statute or regulation for either primary contractors or subcontractors, this concept should flow down to all levels to clarify, to all parties to the Contract, that the Federal Government does not have contractual liability to third parties, absent specific written consent.

Model Clause/Language

While no specific language is required, FTA has developed the following language.

No Obligation by the Federal Government.

(1) The Purchaser and Contractor acknowledge and agree that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying Contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this Contract and shall not be subject to any obligations or liabilities to the Purchaser, Contractor, or any other party (whether or not a party to that Contract) pertaining to any matter resulting from the underlying Contract.

(2) The Contractor agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clause shall not be modified, except to identify the subcontractor who will be subject to its provisions.

20. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS

AND RELATED ACTS

31 USC. 3801, et seq.

49 CFR Part 31 18 USC. 1001

49 USC. 5307

Applicability to Contracts

These requirements are applicable to all contracts.

Flow Down

These requirements flow down to contractors and subcontractors who make, present, or submit covered claims and statements.

Model Clause/Language

These requirements have no specified language, so FTA proffers the following language.

Program Fraud and False or Fraudulent Statements or Related Acts.

(1) The Contractor acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801 et seq. and US DOT regulations, "Program Fraud Civil Remedies," 49 CFR Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying Contract, the Contractor certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying Contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Contractor further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Contractor to the extent the Federal Government deems appropriate.

(2) The Contractor also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a

contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 USC. § 5307, the Government reserves the right to impose the penalties of 18 USC. § 1001 and 49 USC. § 5307(n)(1) on the Contractor, to the extent the Federal Government deems appropriate.

(3) The Contractor agrees to include the above two clauses in each subcontract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the subcontractor who will be subject to the provisions.

21. TERMINATION

49 USC. Part 18

FTA Circular 4220.1E

Applicability to Contracts

All contracts (with the exception of contracts with nonprofit organizations and institutions of higher education) in excess of \$10,000 shall contain suitable provisions for termination by the grantee, including the manner by which it will be affected and the basis for settlement. (For contracts with nonprofit organizations and institutions of higher education the threshold is \$100,000.) In addition, such contracts shall describe conditions under which the Contract may be terminated for default as well as conditions where the Contract may be terminated because of circumstances beyond the control of the Contractor.

Flow Down

The termination requirements flow down to all contracts in excess of \$10,000, with the exception of contracts with nonprofit organizations and institutions of higher learning.

Model Clause/Language

FTA does not prescribe the form or content of such clauses. The following are suggestions of clauses to be used in different types of contracts:

a. Termination for Convenience (General Provision) The (Recipient) may terminate this Contract, in whole or in part, at any time by written notice to the Contractor when it is in the Government's best interest. The Contractor shall be paid its costs, including contract close-out costs, and profit on work performed up to the time of termination. The Contractor shall promptly submit its termination claim to (Recipient) to be paid the Contractor. If the Contractor has any property in its possession belonging to the (Recipient), the Contractor will account for the same, and dispose of it in the manner the (Recipient) directs.

b. Termination for Default [Breach or Cause] (General Provision) If the Contractor does not deliver supplies in accordance with the contract delivery schedule, or, if the Contract is for services, the Contractor fails to perform in the manner called for in the Contract, or if the

Contractor fails to comply with any other provisions of the Contract, the (Recipient) may terminate this Contract for default. Termination shall be affected by serving a notice of termination on the Contractor setting forth the manner in which the Contractor is in default. The Contractor will only be paid the contract price for supplies delivered and accepted or services performed in accordance with the manner of performance set forth in the Contract.

If it is later determined by the (Recipient) that the Contractor had an excusable reason for not performing, such as a strike, fire, or flood, events which are not the fault of or are beyond the control of the Contractor, the (Recipient), after setting up a new delivery of performance schedule, may allow the Contractor to continue work, or treat the termination as a termination for convenience.

c. Opportunity to Cure (General Provision) The (Recipient) in its sole discretion may, in the case of a termination for breach or default, allow the Contractor [an appropriately short period of time] in which to cure the defect. In such case, the notice of termination will state the time period in which cure is permitted and other appropriate conditions

If Contractor fails to remedy to (Recipient)'s satisfaction the breach or default of any of the terms, covenants, or conditions of this Contract within [ten (10) days] after receipt by Contractor of written notice from (Recipient) setting forth the nature of said breach or default, (Recipient) shall have the right to terminate the Contract without any further obligation to Contractor. Any such termination for default shall not in any way operate to preclude (Recipient) from also pursuing all available remedies against Contractor and its sureties for said breach or default.

d. Waiver of Remedies for any Breach In the event that (Recipient) elects to waive its remedies for any breach by Contractor of any covenant, term or condition of this Contract, such waiver by (Recipient) shall not limit (Recipient)'s remedies for any succeeding breach of that or of any other term, covenant, or condition of this Contract.

e. Termination for Convenience (Professional or Transit Service Contracts) The (Recipient), by written notice, may terminate this Contract, in whole or in part, when it is in the Government's interest. If this Contract is terminated, the Recipient shall be liable only for payment under the payment provisions of this Contract for services rendered before the effective date of termination.

f. Termination for Default (Supplies and Service) If the Contractor fails to deliver supplies or to perform the services within the time specified in this Contract or any extension or if the Contractor fails to comply with any other provisions of this Contract, the (Recipient) may terminate this Contract for default. The (Recipient) shall terminate by delivering to the Contractor a Notice of Termination specifying the nature of the default. The Contractor will only be paid the contract price for supplies delivered and accepted or services performed in accordance with the manner of performance set forth in this Contract.

If, after termination for failure to fulfill contract obligations, it is determined that the Contractor was not in default, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of the Recipient.

g. Termination for Default (Transportation Services) If the Contractor fails to pick up the commodities or to perform the services, including delivery services, within the time specified in this Contract or any extension or if the Contractor fails to comply with any other provisions of this Contract, the (Recipient) may terminate this Contract for default. The (Recipient) shall terminate by delivering to the Contractor a Notice of Termination specifying the nature of default. The Contractor will only be paid the contract price for services performed in accordance with the manner of performance set forth in this Contract.

If this Contract is terminated while the Contractor has possession of Recipient goods, the Contractor shall, upon direction of the (Recipient), protect and preserve the goods until surrendered to the Recipient or its agent. The Contractor and (Recipient) shall agree on payment for the preservation and protection of goods. Failure to agree on an amount will be resolved under the Dispute clause.

If, after termination for failure to fulfill contract obligations, it is determined that the Contractor was not in default, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of the (Recipient).

h. Termination for Default (Construction) If the Contractor refuses or fails to prosecute the work or any separable part, with the diligence that will ensure its completion within the time specified in this Contract or any extension or fails to complete the work within this time, or if the Contractor fails to comply with any other provisions of this Contract, the (Recipient) may terminate this Contract for default. The (Recipient) shall terminate by delivering to the Contractor a Notice of Termination specifying the nature of the default. In this event, the Recipient may take over the work and complete it by Contract or otherwise, and may take possession of and use any materials, appliances, and plant on the work site necessary for completing the work. The Contractor and its sureties shall be liable for any damage to the Recipient resulting from the Contractor's refusal or failure to complete the work within specified time, whether or not the Contractor's right to proceed with the work is terminated. This liability includes any increased costs incurred by the Recipient in completing the work.

The Contractor's right to proceed shall not be terminated nor the Contractor charged with damages under this clause if-

1. the delay in completing the work arises from unforeseeable causes beyond the control and without the fault or negligence of the Contractor. Examples of such causes include: acts of God, acts of the Recipient, acts of another Contractor in the performance of a contract with the Recipient, epidemics, quarantine restrictions, strikes, freight embargoes; and
2. the Contractor, within [10] days from the beginning of any delay, notifies the (Recipient) in writing of the causes of delay. If, in the judgment of the (Recipient), the delay is excusable, the time for completing the work shall be extended. The judgment of the (Recipient) shall be final and conclusive on the parties, but subject to appeal under the Disputes clauses.

If, after termination of the Contractor's right to proceed, it is determined that the Contractor was not in default, or that the delay was excusable, the rights and obligations of the parties will be the same as if the termination had been issued for the convenience of the Recipient.

i. Termination for Convenience or Default (Architect and Engineering) The (Recipient) may terminate this Contract in whole or in part, for the Recipient's convenience or because of the failure of the Contractor to fulfill the contract obligations. The (Recipient) shall terminate by delivering to the Contractor a Notice of Termination specifying the nature, extent, and effective date of the termination. Upon receipt of the notice, the Contractor shall (1) immediately discontinue all services affected (unless the notice directs otherwise), and (2) deliver to the Contracting Officer all data, drawings, specifications, reports, estimates, summaries, and other information and materials accumulated in performing this Contract, whether completed or in process.

If the termination is for the convenience of the Recipient, the Contracting Officer shall make an equitable adjustment in the contract price but shall allow no anticipated profit on unperformed services.

If the termination is for failure of the Contractor to fulfill the contract obligations, the Recipient may complete the work by contract or otherwise, and the Contractor shall be liable for any additional cost incurred by the Recipient.

If, after termination for failure to fulfill contract obligations, it is determined that the Contractor was not in default, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of the Recipient.

j. Termination for Convenience or Default (Cost-Type Contracts) The (Recipient) may terminate this Contract, or any portion of it, by serving a notice of termination on the Contractor. The notice shall state whether the termination is for convenience of the (Recipient) or for the default of the Contractor. If the termination is for default, the notice shall state the manner in which the Contractor has failed to perform the requirements of the Contract. The Contractor shall account for any property in its possession paid for from funds received from the (Recipient), or property supplied to the Contractor by the (Recipient). If the termination is for default, the (Recipient) may fix the fee, if the Contract provides for a fee, to be paid the Contractor in proportion to the value, if any, of work performed up to the time of termination. The Contractor shall promptly submit its termination claim to the (Recipient) and the parties shall negotiate the termination settlement to be paid the Contractor.

If the termination is for the convenience of the (Recipient), the Contractor shall be paid its contract close-out costs, and a fee, if the Contract provided for payment of a fee, in proportion to the work performed up to the time of termination.

If, after serving a notice of termination for default, the (Recipient) determines that the Contractor has an excusable reason for not performing, such as strike, fire, flood, events which are not the fault of and are beyond the control of the Contractor, the (Recipient), after setting up a new work schedule, may allow the Contractor to continue work, or treat the termination as a termination for convenience.

22. GOVERNMENT-WIDE DEBARMENT AND SUSPENSION (NONPROCUREMENT)

Background and Applicability

In conjunction with the Office of Management and Budget and other affected Federal agencies, DOT published an update to 49 CFR Part 29 on November 26, 2003. This government-wide regulation implements Executive Order 12549, *Debarment and Suspension*, Executive Order 12689, *Debarment and Suspension*, and 31 USC. 6101 note (Section 2455, Public Law 103-355, 108 Stat. 3327).

The provisions of Part 29 apply to all grantee contracts and subcontracts at any level expected to equal or exceed \$25,000 as well as any contract or subcontract (at any level) for Federally required auditing services. 49 CFR 29.220(b). This represents a change from prior practice in that the dollar threshold for application of these rules has been lowered from \$100,000 to \$25,000. These are contracts and subcontracts referred to in the regulation as "covered transactions."

Grantees, contractors, and subcontractors (at any level) that enter into covered transactions are required to verify that the entity (as well as its principals and affiliates) they propose to contract or subcontract with is not excluded or disqualified. They do this by (a) Checking the Excluded Parties List System, (b) Collecting a certification from that person, or (c) Adding a clause or condition to the Contract or subcontract. This represents a change from prior practice in that certification is still acceptable but is no longer required. 49 CFR 29.300.

Grantees, contractors, and subcontractors who enter into covered transactions also must require the entities they contract with to comply with 49 CFR 29, subpart C, and include this requirement in their own subsequent covered transactions (i.e., the requirement flows down to subcontracts at all levels).

Clause Language

The following clause language is suggested, not mandatory. It incorporates the optional method of verifying that contractors are not excluded or disqualified by certification.

Suspension and Debarment

This Contract is a covered transaction for purposes of 49 CFR Part 29. As such, the Contractor is required to verify that none of the Contractor, its principals, as defined at 49 CFR 29.995, or affiliates, as defined at 49 CFR 29.905, are excluded or disqualified as defined at 49 CFR 29.940 and 29.945.

The Contractor is required to comply with 49 CFR 29, Subpart C, and must include the requirement to comply with 49 CFR 29, Subpart C in any lower tier covered transaction it enters into.

By signing and submitting its bid or proposal, the bidder or proposer certifies as follows:

The certification in this clause is a material representation of fact relied upon by **Allegany County Transit**. If it is later determined that the bidder or proposer knowingly rendered an erroneous certification, in addition to remedies available to **Allegany County Transit**, the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment. The bidder or proposer agrees to comply with the requirements of 49 CFR 29, Subpart C, while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower-tier covered transactions.

24. CIVIL RIGHTS REQUIREMENTS

29 USC. § 623, 42 USC. § 2000

42 USC. § 6102, 42 USC. § 12112

42 USC. § 12132, 49 USC. § 5332

29 CFR Part 1630, 41 CFR Parts 60 et seq.

Applicability to Contracts

The Civil Rights Requirements apply to all contracts.

Flow Down

The Civil Rights requirements flow down to all third-party contractors and their contracts at every tier.

ModeClause/Language

The following clause was predicated on language contained at 49 CFR Part 19, Appendix A, but FTA has shortened the lengthy text.

Civil Rights - The following requirements apply to the underlying Contract:

(1) **Nondiscrimination** - In accordance with Title VI of the Civil Rights Act, as amended, 42 USC. § 2000d, section 303 of the Age Discrimination Act of 1975, as amended, 42 USC. § 6102, section 202 of the Americans with Disabilities Act of 1990, 42 USC. § 12132, and Federal transit law at 49 USC. § 5332, the Contractor agrees that it will not discriminate against any employee or applicant for employment because of race, color, creed, national origin, sex, age, or disability. In addition, the Contractor agrees to comply with applicable Federal implementing regulations and other implementing requirements FTA may issue.

(2) Equal Employment Opportunity - The following equal employment opportunity requirements apply to the underlying Contract:

(a) Race, Color, Creed, National Origin, Sex - In accordance with Title VII of the Civil Rights Act, as amended, 42 USC. § 2000e, and Federal transit laws at 49 USC. § 5332, the Contractor agrees to comply with all applicable equal employment opportunity requirements of US Department of Labor (US DOL) regulations, "Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor," 41 C.F.R. Parts 60 et seq., (which implement Executive Order No. 11246, "Equal Employment Opportunity," as amended by Executive Order No. 11375, "Amending Executive Order 11246 Relating to Equal Employment Opportunity," 42 USC. § 2000e note), and with any applicable Federal statutes, executive orders, regulations, and Federal policies that may in the future affect construction activities undertaken in the course of the Project. The Contractor agrees to take affirmative action to ensure that applicants are employed and that employees are treated during employment, without regard to their race, color, creed, national origin, sex, or age. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. In addition, the Contractor agrees to comply with any implementing requirements FTA may issue.

(b) Age - In accordance with section 4 of the Age Discrimination in Employment Act of 1967, as amended, 29 USC. § § 623 and Federal transit law at 49 USC. § 5332, the Contractor agrees to refrain from discrimination against present and prospective employees for reason of age. In addition, the Contractor agrees to comply with any implementing requirements FTA may issue.

(c) Disabilities - In accordance with section 102 of the Americans with Disabilities Act, as amended, 42 USC. § 12112, the Contractor agrees that it will comply with the requirements of US Equal Employment Opportunity Commission, "Regulations to Implement the Equal Employment Provisions of the Americans with Disabilities Act," 29 CFR Part 1630, pertaining to employment of persons with disabilities. In addition, the Contractor agrees to comply with any implementing requirements FTA may issue.

(3) The Contractor also agrees to include these requirements in each subcontract financed in whole or in part with Federal assistance provided by FTA, modified only if necessary, to identify the affected parties.

25. BREACHES AND DISPUTE RESOLUTION

49 CFR Part 18

FTA Circular 4220.1E

Applicability to Contracts

All contracts in excess of \$100,000 shall contain provisions or conditions which will allow for administrative, contractual, or legal remedies in instances where contractors violate or breach contract terms, and provide for such sanctions and penalties as may be appropriate.

This may include provisions for bonding, penalties for late or inadequate performance, retained earnings, liquidated damages, or other appropriate measures.

Flow Down

The Breaches and Dispute Resolutions requirements flow down to all tiers.

ModelClauses/Language

FTA does not prescribe the form or content of such provisions. What provisions are developed will depend on the circumstances and the type of Contract. Recipients should consult legal counsel in developing appropriate clauses. The following clauses are examples of provisions from various FTA third party contracts.

Disputes - Disputes arising in the performance of this Contract, which is not resolved by Agreement of the parties shall be decided in writing by the authorized representative of (Recipient)'s [Transit Chief]. This decision shall be final and conclusive unless, within [ten (10)] days from the date of receipt of its copy, the Contractor mails or otherwise furnishes a written appeal to the [title of employee]. In connection with any such appeal, the Contractor shall be afforded an opportunity to be heard and to offer evidence in support of its position. The decision of the [title of employee] shall be binding upon the Contractor, and the Contractor shall abide by the decision.

Performance During Dispute - Unless otherwise directed by (Recipient), Contractor shall continue performance under this Contract while matters in dispute are being resolved.

Claims for Damages - Should either party to the Contract suffer injury or damage to person or property because of any act or omission of the party or of any of his employees, agents or others for whose acts he is legally liable, a claim for damages therefor shall be made in writing to such other party within a reasonable time after the first observance of such injury or damage.

Remedies - Unless this Contract provides otherwise, all claims, counterclaims, disputes and other matters in question between the (Recipient) and the Contractor arising out of or relating to this Agreement or its breach will be decided by arbitration if the parties mutually agree, or in a court of competent jurisdiction within the State in which the (Recipient) is located.

Rights and Remedies - The duties and obligations imposed by the Contract Documents and the rights and remedies available hereunder shall be in addition to and not a limitation of any duties, obligations, rights, and remedies otherwise imposed or available by law. No action or failure to act by the (Recipient), (Architect) or Contractor shall constitute a waiver of any right or duty afforded any of them under the Contract, nor shall any such action or failure to act constitute an approval of or acquiescence in any breach thereunder, except as may be specifically agreed in writing.

28. DISADVANTAGED BUSINESS ENTERPRISE (DBE)
49 CFR Part 26

Background and Applicability

The newest version on the Department of Transportation's Disadvantaged Business Enterprise (DBE) program became effective July 16, 2003. The rule provides guidance to grantees on the use of overall and contract goals, requirement to include DBE provisions in subcontracts, evaluating DBE participation where specific contract goals have been set, reporting requirements, and replacement of DBE subcontractors. Additionally, the DBE program dictates payment terms and conditions (including limitations on retainage) applicable to all subcontractors regardless of whether they are DBE firms or not.

The DBE program applies to all DOT-assisted contracting activities. A formal clause such as that below must be included in all contracts above the micro-purchase level. The requirements of clause subsection b flow down to subcontracts.

A substantial change to the payment provisions in this newest version of Part 26 concerns retainage (*see* section 26.29). Grantee choices concerning retainage should be reflected in the language choices in clause subsection d.

Clause Language

The following clause language is suggested, not mandatory. It incorporates the payment terms and conditions applicable to all subcontractors based in Part 26 as well as those related only to DBE subcontractors. The suggested language allows for the options available to grantees concerning retainage, specific contract goals, and evaluation of DBE subcontracting participation when specific contract goals have been established.

Disadvantaged Business Enterprises

- a. This Contract is subject to the requirements of Title 49, Code of Federal Regulations, Part 26, *Participation by Disadvantaged Business Enterprises in Department of Transportation Financial Assistance Programs*. The national goal for participation of Disadvantaged Business Enterprises (DBE) is 10%. The agency's overall goal for DBE participation is 10%. **A separate contract goal of 0% DBE participation has been established for this procurement.**
- b. The Contractor shall not discriminate on the basis of race, color, national origin, or sex in the performance of this Contract. The Contractor shall carry out applicable requirements of 49 CFR Part 26 in the award and administration of this DOT-assisted Contract. Failure by the Contractor to carry out these requirements is a material breach of this Contract, which may result in the termination of this Contract or such other remedy as **Allegany County Transit** deems appropriate. Each subcontract the contractor signs with a subcontractor must include the assurance in this paragraph (*see* 49 CFR 26.13(b)).
- c. Bidders/offerors are required to document sufficient DBE participation to meet these goals or, alternatively, document adequate good faith efforts to do so, as provided for in 49 CFR 26.53.

Award of this Contract is conditioned on submission of the following **concurrent with and accompanying sealed bid**

1. The names and addresses of DBE firms that will participate in this Contract;
2. A description of the work each DBE will perform;
3. The dollar amount of the participation of each DBE firm participating;
4. Written documentation of the bidder/offeror's commitment to use a DBE subcontractor whose participation it submits to meet the contract goal;
5. Written confirmation from the DBE that it is participating in the Contract as provided in the prime Contractor's commitment; and
6. If the contract goal is not met, evidence of good faith efforts to do so.

Bidders must present the information required above **with initial proposals** (see 49 CFR 26.53(3)).

The successful bidder/offeror will be required to report its DBE participation obtained through race-neutral means throughout the period of performance.

d. The Contractor is required to pay its subcontractors performing work related to this Contract for satisfactory performance of that work no later than 30 days after the Contractor's receipt of payment for that work from the **Allegany County Transit**. In addition, **is required to return any retainage payments to those subcontractors within 30 days after the subcontractor's work related to this Contract is satisfactorily completed**

e. The contractor must promptly notify **Allegany County Transit** whenever a DBE subcontractor performing work related to this Contract is terminated or fails to complete its work and must make good faith efforts to engage another DBE subcontractor to perform at least the same amount of work. The contractor may not terminate any DBE subcontractor and perform that work through its own forces or those of an affiliate without the prior written consent of **Allegany County Transit**.

30. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS

FTA Circular 4220.1E

Applicability to Contracts

The incorporation of FTA terms applies to all contracts.

Flow Down

The incorporation of FTA terms has unlimited flow down.

Model Clause/Language

FTA has developed the following incorporation of terms language:

Incorporation of Federal Transit Administration (FTA) Terms - The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1E, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Contractor shall not perform any act, fail to perform any act, or refuse to comply with any of Allegany County Transit's requests, which would cause it to be in violation of the FTA terms and conditions.

Exhibit C: Price and Payment Milestone Schedule

Price Proposal (Revised for 11 + 1 Vehicle)

Summary of Prices and Terms:

This Price Proposal is for the AVL-APC Reservation, Scheduling, and Dispatch system in response to Allegany County RFP #101. This Price Proposal includes all costs and optional costs – including both primary and subcontractors – for the complete system offered in the Technical Proposal.

This revised proposal has been repriced for 11 one-door vehicles and 1 two-door vehicle. Please note that the price proposal number of vehicles and equipment take precedent over the technical proposal. Contractor will correct the technical proposal after ACT approves the price proposal changes.

1. The baseline system cost without options detailed in Section 1: **\$141,094.00**
Payment milestones will be negotiated after selection
2. Annual Recurring costs as described in Section 2: **\$25,740.00**
Payment will be negotiated after selection (monthly or quarterly)
3. For the APC pricing, this proposal assumes eleven single-door vehicles for ambulatory riders, and one vehicle requiring two sensors, one for each door. It is a common industry practice to not install APCs on the doors with lifts dedicated for wheelchairs. During the site survey, contractor will work with ACT to change these assumptions as may be needed.
4. **Cost Saving Measures:** Paratransit and microtransit passenger counts are determined at the time of reservation, including number of passengers and personal companion attendance. This is needed to make sure CAD route making algorithm takes the vehicle capacity into account during scheduling. As a result, ACT may wish to evaluate their plan and possibly remove some smaller paratransit vehicles from the list of vehicles that require APCs. MRMS will accurately count passengers using driver actions of marking trips as picked up and dropped off.
Contractor will work with the ACT project manager during the discovery period to finalize the plan for reducing the number vehicles with APCs. As a rough indicator, removing APCs from one paratransit vehicle will save ACT about \$3000 in initial costs and \$400 in annual recurring costs.
5. **Optional Modules & Services:** Section 3 includes a list of optional modules which ACT may wish to add to their system. These options may be added at the start or anytime in future. They are offered as a measure to illustrate additional features ACT can use to reduce its staff's workload and enhance riders' experience.

ACT COST PROPOSAL

Section 1: Project Implementation Phase (Capital Budget)

ITS Implementation - Reservation, Scheduling, Dispatching, and APC

Equipment - One Time Cost		
Hardware	Units	Fees
MDT Bundle (Driver Device and Mount)	22	\$12,980
Spare MDT	2	\$900
APC (see Section 5: APC Hardware Table) - Vehicles with One Door	11	\$19,602
APC (see Section 5: APC Hardware Table) - Vehicle with Two Doors	1	\$2,739
APC Install Kit (see Section 5: APC Hardware table)	12	\$8,969
		\$45,190
Software Licenses - One Time Cost		
Software Modules		Fees
Paratransit Reservation - Demand Response Call Center, Rider Profile	Per Site/Account	\$5,500
Paratransit - Scheduling & Dispatch - AVL System, ARB, ARD	Per Site/Account	\$7,500
Paratransit and Fixed Route: MDT App	22	\$16,500
Live Map Dashboard and Playback	Per Site/Account	\$4,700
Paratransit Rider App, Fixed Route Travel Planner	Per Site/Account	NC
Fixed Route Scheduling System - Route Structure, Routing, and Blocking	Per Site/Account	\$9,500
GTFS Feed Export in CSV	Per Site/Account	\$3,000
APC Data Integration into Operating Software	Per Site/Account	\$3,000
		\$49,700
Implementation and Training - One Time Cost		
Product		Fees
Project Management - IT Curves, System Integration	Per Project	\$12,000
Project Management - APC by IRIS	Per Project	\$7,766
Discovery, System Requirement Review, System Design - Hours	20	\$1,900
ITS Configuration, Build, and Factory Test - Hours	40	\$3,800
Site Deployment and Site Test - Hours	80	\$7,600
Customer Training - Over Zoom and Web - Hours	32	\$3,040
Shipment of APC Material to Site	Per Project	\$1,320
APC On-site Installation, Testing, and Delivery	22 Vehicles	\$8,778
		\$46,204
Subtotal Implementation Phase		\$141,094

6.

Section 2: Annual Recurring Costs (Operating Budget)

ITS Implementation - Reservation, Scheduling, Dispatching (RSD) &APC

Ongoing Annual Fees		
Annual Service	Quantity	Fees
Annual Support & Maintenance	Site Support	\$12,600
ITS Annual Cloud Hosting Fees for the IT Curves System	Site Support	\$8,100
APC Annual Cloud Hosting Fees	Site Support	\$5,040
Total of Annual Fees		\$25,740

Section 3: Customer's Optional Items

Customer Optional items (One Time Cost)		
Eligibility Subsystem - Online Application, Approval, etc.	Per Site/Account	\$4,500
Telephony System -Interactive Voice Response Customer will furnish SIP Trunk Subscription	Per Site/Account	\$4,500
Digital Wallet System	Per Site/Account	\$4,500

Section 4: Customer Furnished Items

Customer Furnished Items	
Cellular Data Plan - 1 GB per unit of MDT	22 lines
Office/Staff Workstations, Local Network, and Internet Connectivity	as required
Anti-Virus of Customer Choice for their own Stations	as required

Section 5: APC Bill Of Material (BOM)

Equipment - One Time Cost	Part #	QTY
BG_D500R2F-BK_ETH_WP Retro flush mount kit without door contact, Automatic passenger counting sensor IRMA MATRIX, Ethernet, black RAL9005, flush mount version, cable: 2m power connection (Weather Pack 2pin), and 1 m ETH (M12, female)	5200_61	1
BG_D500R2F-BK_ETH_WP Retro surface mount kit without door contact, Automatic passenger counting sensor IRMA MATRIX, Ethernet, black RAL9005, flush mount version, cable: 2m power connection (Weather Pack 2pin), and 1 m ETH (M12, female)	5200_63	12
7 IRMA Hub Road Set (NA-V) Set, Mobile LTE Router, Model: RUT955 NA-Verizon certified version including 5-Element-Rooftop-antenna and SD Card 4GB DOES NOT INCLUDE Sim Card or connectivity services	2302_37	12
Installation Kit		
Relay, Bosch Style 12 Delayed Timer	8350_03	12
Relay, Bosch Style 12v Automotive Relay	8350_04	12
Connector, Bosch Style Automotive Relay	8350_05	24
Ethernet, M12, RJ45, halogen-free, 6m	0244_54	12
Ethernet, M12, RJ45, halogen-free, 10m	0244_33	12
Sensor bracket, square tub, steel, RAL 9005 (jet black)	6098_01	12
InLine-ATM_Holder	8350_06	1 lot
Fuse-ATM-5amp	8350_08	1 lot
18/2-S-Wire (per foot)	8350_10	1 lot
18/4-S-Wire (per foot)	8350_12	1 lot

ACT Payment Milestones

Effective Date of Contract (EDC) as defined in Agreement

Project Implementation, Licenses Fee and Services (One Time Fees)		
Milestone	Date	% Payments
Phase 1 -- Completion of Discovery Phase	EDC+1 week	20%
Phase 2 -- Design & Build, Material Orders (APC), Factory setup	EDC+5 week	20%
Phase 3.1 -- Staging & Installation, Training, text and Acceptance Software	EDC+8 week	20%
Phase 3.2 -- APC install, Delivery and test	EDC+8 week	20%
Phase 4.1 -- CUTOVER and 1 weeks post cutover continuous Support	EDC+9 week	20%
Total Payments Project implementation	\$ 141,094.00	100%

Annual Recurring Costs (Operating Budget) Payment Milestones

Annual Service	Quantity	Fees
Annual Support & Maintenance	Site Support	\$12,600
ITS Annual Cloud Hosting Fees for the IT Curves System	Site Support	\$8,100
APC Annual Cloud Hosting Fees	Site Support	\$5,040
	Cutover+ 1 week & Annual Start of each year	100%
Total of Annual Fees	100%	\$25,741

Exhibit D: Compliance Matrix (Proposal Section 6.1.12)

Table starts in next page

Item	Description	Compliant	Comments
1. System Components			
a.	Vendor hosted system;	Yes	IT Curves will host the service on the IT Curves' cloud.
b.	GPS-based vehicle location and position transmission technologies;	Yes	GPS coordinates are reported and recorded every 2 minutes or faster.
c.	On-board devices to provide messaging and routing information	Yes	Smart device application interface for messaging and electronic manifests
d.	Automatic Passenger Counting (APC) accurate to a minimum of 95%;	Partial	IT Curves' driver application allows input of passengers, or can integrate with other devices to track onboarding and offboarding (IRIS APC kits).
e.	Single-point Bus Operator login;	Yes	Driver device requires driver credentials to log in.
f.	Dispatching software allowing for vehicle tracking, number of passengers on-board, and communication between Dispatchers and Bus Operators;	Yes	The dispatch software allows real-time vehicle tracking, status of each trip and load, and communication between the driver device and dispatch system.
g.	Data capture, analysis, and reporting services capable of producing NTD reporting;	Yes	Rich and flexible predefined reports and custom report development are available as per client needs including NTD data.
h.	Data communications services, data display services, and end-user customization services for public real-time schedule and route information, including open access to information data via major bus stop information signs, SMS text messaging, internet, phone, and mobile devices;	Yes	IT Curves' system allows dynamic route creation, provides accurate ETA to riders via notifications (SMS, call out, and/or email). Fixed route information is available on the rider smart phone application as well. Live GPS coordinates allows forecasting and provides accurate time of arrival for fixed routes.
i.	Mobile dispatch hardware and software including laptop or tablet-based approaches;	Yes	IT Curves' dispatch application is fully web based and can be accessed from anywhere.
j.	Software or interface allowing data export into a format used by Google Transit Feed System (GTFS); or approved equal.	Yes	All data can be exported in standard Excel or CSV files, and the system will also allow standard GTFS exports.

k. Public Information: A customer interface that permits text message real-time arrival information using a smartphone & PC graphical representation of real-time bus location; customer set alerts for notifications of a particular route's real-time arrival. The system will provide for the following functionality: ● Provision of a real-time, web-based display of GPS-equipped vehicle locations for public access via the internet or smartphone. ● Provide or integrate with trip-planning ● Bus schedule information retrieval by computer, tablet, or smartphone ● Provision for an alert system for customer interface ● Data will be available in GTFS format	Yes	● Set up fixed routes in the dispatch system. ● Dispatch route to driver's in-vehicle device. ● Allows driver to mark arrival and departure at each stop with number of passengers. ● Allows riders to view routes with real time bus arrival time on the selected stop. ● Rider can open transit planning app, such as Moovit or Google via deep link, within rider smart phone app. ● System also provides GTFS feed and can integrate with open API of other systems. Please see Section 6.4. for detailed information on fixed route management and rider smart phone application.
1.1 Equipment Hardware Requirements		
a. Vehicle installed devices: ruggedized devices capable of reliable and continuous operation in the service environment of transit buses and supervisory vehicles, including temperature and humidity variations, shocks, electrical supply variations, and vibration;	Yes	IT Curves' driver application can be installed on any android device. IT Curves can supply tablets with ruggedized enclosure mounts installed with the driver app.
b. Mobile devices: Capable of sustained operation for up to eighteen (18) hours at a time under both vehicle and auxiliary power sources.	Yes	IT Curves provides tablets which meet this requirement.
c. Desktop services: capable of being operated on computers used for other general office purposes without significant performance and capability degradation.	Yes	Any commercial computer with an internet connection and modern browser can access MRMS through the cloud.
d. Back-end devices: Back-end devices are expected to be in a vendor-hosted environment and expected to be provided by and maintained by the vendor. ACT is not planning to maintain or provide a server environment.	Yes	IT Curves' solution is fully cloud hosted and offered as Software-as-a-Service.
1.2 Software Requirements		

a. User-friendly, graphically-based interface;	Yes	All user interfaces are easy to understand and are user friendly.
b. Administrative tools including the ability to set security levels and user access rights, and diagnostic functions to measure system health and detect defects;	Yes	All software modules and features are controlled by user access rights. Administrators can control role assignments to modules or individual functions. Please see Section 6.4. for user access rights and IT Curves' diagnostic tools.
c. Data archiving tools, including automatic archiving of daily data, online storage of at least 12 months of data, accessible at any time by staff, and offline storage of all data for the previous five years. Data should be transmitted from vehicles to base wirelessly	Yes	IT Curves performs periodic backups and data archiving processes on the cloud. IT Curves offers up to 3-year data availability on the live system, and backups/offline storage for up to 5 years more if required.
d. Supervisory and on-bus devices shall use the most straightforward interfaces required to perform necessary tasks to minimize driver attention requirements.	Yes	Please see Section 6.4. for detailed information on driver devices.
e. Integration and migration of the new system with the existing system.	Yes	IT Curves will work closely with your operations to perform system migration and training.
2. System Testing		
a. Prepare system testing plan that details testing methods to include pass/fail criteria;	Yes	IT Curves will setup and make the system available to the County pre-migration to validate and approve the system.
3. Training and Documentation		
a. Prepare and deliver training plans, training activities, training materials, and system documentation. The training plan shall describe the resources provided and a preferred training path for drivers, dispatchers, management, customer service, and maintenance staff;	Yes	IT Curves supplies comprehensive in-person or virtual training and migration planning. All training will be accompanied by user manuals for future reference.
b. The training plan shall include on-site classes, written tutorials, web-based learning, and train-the-trainer resources. The training plan shall consist of an estimated number of hours to complete a competent level of system understanding by staff as it applies to the various roles but not limited to (Drivers, Dispatchers, Management, Administrative, Maintenance, Operations, System Administrative);	Yes	Separate training sessions will be conducted to train back office - i.e., call agents, dispatchers, administrators, and others - and driver trainers. Being local, IT Curves can easily offer onsite training as well virtual zoom sessions.

c. Deliver system documentation. Required documentation includes "as-built" system and component design documents, records of all the necessary testing and acceptance procedures, warranty certificates for all components, training materials, and user and administration reference manuals.	Yes	System delivery will include complete documentation including design documents, testing procedures, warranty certificates, and training and reference manuals.
d. On-site training of ACT staff and related materials is to include in the proposed cost. Provide cost information (per hour basis) for additional training as needed after the system has been in place and utilized for several weeks or months. In addition, intuitive online training for new hires and refresher courses must be available 24/7 at no additional cost.	Yes	The cost for on-site training, additional training, and refresher courses are included in the Cost Proposal.
4. Warranty, Maintenance, and Spare Parts		
a. Provide a Three-year warranty for all system components and the total system. A warranty certificate, valid for three years following the completion of vendor reliability testing and staff acceptance. Support shall include telephone, email, and remote-control support for three-hour and 24-hour response incident levels during regular business hours and after-hours incident reporting. On a single-point-of-contact basis, provide a long-term system support and maintenance agreement proposal for all components that are a part of the system. The cost proposal must note any future maintenance costs for the system operation and components.	Yes	Complies, a three-year warranty will be provided. Maintenance and support costs are included in the Cost Proposal.

b. Data Capture and Analysis - List the reports and data that will be available. Allegany County Transit requires pulling reports as needed for daily, weekly, monthly, or annual reporting. • Alltrans (Para-transit ADA) • Alltrans Demand Response • Transit Fixed Route Service • JARC - Job Access Reverse Commute • Mileage to each category • Trips for each category • Mobility Type – Elderly Ambulatory, Elderly Non-Ambulatory, Disabled Ambulatory, Disabled Ambulatory, and Non-Ambulatory	Yes	IT Curves' system comes with many predefined reports which can be run as needed for any given period. Custom reports can be added easily as per client requirements during installation, later through our support policy, or built by your staff through the Custom Report Wizard. The reporting suite comes along rich and flexible filter criteria and allows data export into the Excel, CSV, and other file formats.
c. SEPARATE REPORTS BY FUNDING SOURCE - Ridership and miles for each category • ALLTRANS • HRDC • HRDC Mobility • JARC • Fixed Route	Yes	Please refer to Section 6.4. for further details. IT Curves will provide all the reports required by ACT.
5. Client Management		
a. Necessary Information: First Name, Last Name, Birthdate, Load Time, Unload Time, Client Id, Identification Number, Client Code, Disability, Mobility Aid, Space Type, Default Fare Type, excluded vehicle types, Service Type, Gender, Transport Mode, Default Address Type, Private Comments, Scheduling Comments, Escort Option.	Yes	Comply to all
b. Address Information: Home Address, alternate address(es), default pickup address, default drop-off address, mailing address, address validity dates, address comments. Addresses are geocoded and visible on the map	Yes	Comply to all
c. Contact Information: Main Contact, Alternate Contact(s) types. Phone Number, Cell Number, Work Number, E-mail address, Fax number.	Yes	Comply to all

d. Status Information: Active Date, Client Type, ADA Type, Client Status, and Comments. Ability to automatically have client status affect trip activation and booking permissions	Yes	Comply to all
e. Funding Information: Assigned Programs, validity dates, enabled/disabled	Yes	Comply to all
f. Ability to restrict client travel to only permitted locations	Yes	IT Curves' system allows the setup of Program rules, including coverage area and service hours; if any reservation requested outside the coverage area and service hours it will not be booked. Additionally, IT Curves offers an eligibility system to manage restrictions and subscriptions for individual riders.
g. The ability to view all audit information, such as who last modified the client and which field(s) were modified.	Partial	IT Curves' system provides a complete audit trail for all records showing all modifications made by which user and on what date. Currently, it does not specify which client information was modified, but IT Curves is willing to add that feature as part of current proposal.
h. The ability to add multiple service types for a client and define validity dates.	Yes	ACT can define as many programs, or sets of service rules including validity date and client type, as needed.
i. Fields can be made mandatory, and the user will be alerted if they fail to fill in the field area before saving.	Yes	Confirmed, fields can be made mandatory.
j. Fields can be "read-only" or can be disabled.	Yes	IT Curves' system allows to riders to attach customer attributes to client profiles, and each attribute can be marked as permanent or removable. These attributes are tied with trip reservation and can be removed only if not marked as permanent.
k. Ability to create a client template, so when a new client is created, specific fields are automatically populated.	No	IT Curves offers templates at account, driver, and vehicle level. Currently system does not offer template for client profile but can be added if ACT finds it necessity.
6. Reporting		
a. Canceled, Missed, No Show Trips Report - User selects a date range, a client (leave blank for all), and trip type to include in a report. The report lists details for each trip, subtotals, and grand totals.	Yes	Comply to all, refer to Section 6.4.
b. Denials Report - displays details and totals for all trips with a denial status.	Yes	Cancellation report due to reason denial of time negotiation.

c. Trip Count Report - selectors: From Date to Date, Runs, Booking Purpose, Subtype, Trip Type, and Fare Type. Report list of trips based on selection criteria, details if requested, providing subtotals and totals for trips.	Yes	Comply to all.
d. Trip Count by Funding Source Report - selectors: From Date to Date, Trip Type, Funding Source. This report displays trips grouped by funding sources and funding programs together with their counts and faring information.	Yes	Comply to all.
e. Trip Hours Productivity - These reports display the edited and non-edited Service and Revenue hours for a route, range of routes, or all routes.	Yes	Comply to all.
f. Trip Distance Productivity - These reports provide edited or non-edited information regarding Service and Revenue Distance.	Yes	All reports are executed using the latest data. Any modification made by users will reflect on the reports in real time.
g. On-Time Compliance - This report provides detailed or summary information per route regarding on-time performance.	Yes	Comply to all.
h. Daily Operations - This report displays information about the operations of a site by hour range.	Yes	Comply to all.
i. NTD Standard - The standard report required by the National Transit Database for reporting financial and operating data.	Yes	Comply to all.
j. Driver Manifest - Landscape, Portrait, With Contacts - This is a trip listing for each driver they use while picking up and dropping off clients.	Yes	IT Curves offers multiple print formats for paper manifest.
k. Time and Distance Report - The Time and Distance report displays information entered when the booking was created or any information edited through the Trip Edit process.	Yes	Comply to all.
l. Data Integrity Report – checks for data entry errors over a specified date range, such as out- of-order odometer readings or actual times.	Yes	Comply to all.
m. Trip Export Report – exports trip data into a format optimized for .csv or excel, which can then be imported into a different system.	Yes	Comply to all.

n. Run Productivity Report - This report displays Passenger Count, Trip Count, Hours, and Mileage by route.	Yes	Comply to all.
o. Ridership by Jurisdiction Report – report displays trip count by polygon/zone.	Yes	Comply to all.
p. Funding Source Productivity Report - This report separates and displays Passenger Count, Trip Count, Hours, and Mileage by the funding source.	Yes	Comply to all.
q. Common Location Report – displays the number of trips taken to a location & trip details within a specified date range.	Yes	Comply to all.
r. Client Summary Report – displays a list of clients ordered by a client's last name, with the option of including only active clients.	Yes	Comply to all.
s. Call Center Productivity Report – displays the number of trips entered by the user over a given date range.	Yes	Comply to all.
t. Payroll Hours by Route Report – displays the number of hours driven per driver per route over a given date range.	Yes	Comply to all.
u. Client Mailing Labels report – exports client data to a mailing label-friendly format.	Yes	All data can be exported in Excel or CSV files. A simple Excel macro can be provided to generate mailing labels.
v. Subscription Report – displays a list of active subscription trips.	Yes	Comply to all.
7. MDT Software		
a. Mobile Data Terminal compatibility – the vendor must provide in-vehicle software that can operate on a wide range of Android tablet models currently offered from standard consumer electronics suppliers.	Yes	IT Curves offers and can install off-the-shelf Android tablets with our driver app into ACT vehicles.
b. Drivers must be able to log on to the MDT unit by entering their employee identification and the vehicle's odometer reading into the MDT unit	Yes	Complies, please refer to Section 6.4. for further details. Login requires driver number, pin, and odometer entry.
c. Upon successful login, before the manifest is displayed, the MDT software shall display a pre-trip inspection screen that the vehicle operator shall fill in after conducting their pre-trip inspection of the vehicle	Yes	Yes; a similar screen can be offered post-trip.

d.	Once the MDT unit powered up, it will automatically display a driver log-on form screen requesting the driver's identification number and odometer reading.	Yes	Complies. Login requires driver number, pin, and odometer entry.
e.	The MDT unit will validate the log on information with the scheduling software.	Yes	The MDT constantly synchronizes with the cloud system, including validating driver log on information.
f.	The vendor should be able to comply with the following messaging requirements: • Trip Messages • Driver Log On • Driver Log Off • Pick Up Site Arrival • Pick up site Performed • Drop Off Site Arrival • Drop Off Site Performed • Additional Rider Boarding • Additional Rider Alighting • Rider No Show • Rider Door Cancellation • Emergency Message	Yes	Comply to all.

8. General System Specifications

a.	User interface should support the most recent major releases of the following web browsers: Chrome, Firefox, Safari, Microsoft Edge, IE 11.	Yes	MRMS performs well on all the specified browsers; IT Curves recommends using Firefox for best results.
b.	Support interfaces to other data sources and applications, including legacy systems and future applications	Yes	IT Curves develops and maintains our system in-house, and we can create open APIs to interface with many systems as needed.
c.	Run server application on Windows Server 2019 or 2022 64-bit or approved equal with salient characteristics.	Yes	Our cloud server hardware meets these requirements.
d.	Run time ability to pass 24 hours for same-day routes that run into the next day. (1:00 am)	Yes	Complies.
e.	Provide multi-user functionality	Yes	Complies.

9. GIS

a.	The System must be compatible for use with ESRI and Google or approved equal with salient characteristics.	Yes	IT Curves' system uses Open Street Map as primary source; if any address is not covered and verified using OSM, the system automatically refers to Google map services. All the times and distances are computed based on map provided driving directions.
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b. System map must be capable of setting speed factors by the time of day and distance of the trip.	Yes	Routing is performed based on the driving directions from map services and respects the posted speed limits.
10. Geocoding		
a. Entering in full or partial addresses, i.e., '123 Main St' or '123 Main St, Cumberland Md. 21502. The system will return exact and partial matches	Yes	The system suggests complete address after user starts typing in the address. The system also saves clients previously requested addresses and shows them in a drop-down list for quick selection.
b. Batch Geocoding	Yes	Trips can be loaded in batches using standard CSV or Excel files.
c. Point and click on the map	Yes	Complies.
d. Run Travel Restrictions - polygons that restrict where a specific run (shift) can operate. Restrictions can specify pick-up and drop-off rules	Yes	System allows the creation of different fleets and different services which can meet this expectation.
11. Trip Booking		
a. Point and click navigation between different sections of the screen	Yes	User can navigate through the call taker screen using the tab key on the keyboard or clicking on any field on the screen after reservation process has been initiated.
b. The trip Booking process must allow for quick searching and selection of clients, including, but not limited to Search Criteria: last name, first name, phone number, client id, identification number, birthdate	Yes	Allows search by client name, client ID, or phone number. Client name can be partially typed and the system will show all matching client names in drop down on the reservation screen.
c. Once the client search query has been entered, the proposed system will return all full and partial matches. Upon clicking on a match, the end-user will have quick access to view the following information: Mobility Aid, Disability, Status, Address, Phone Number, Comments	Yes	Complies. Easy searching and filtering are available on the customer list and call agent screen. The information mentioned can be displayed from the selected client profile and populated.
d. Add single booking, add repeat (subscription) booking, edit single booking, edit subscription booking, cancel multiple bookings with a single click, add group booking, add unregistered client booking (some agencies may not require a named passenger to transport, and this functionality expedites getting an unregistered booking into the system without first registering the passenger)	Yes	Complies. Single booking, single booking with return trip, multi-leg bookings, subscription bookings (standing orders) can be created in the system. Bookings and subscription templates can be edited. If a client does not exist in the system, the call taker can make a reservation without a client profile or use a generalized profile to add the booking against.

e.	The screen will allow for quick date selection. Default date offset, calendar display are options for date selection.	Yes	Complies.
f.	The screen will display all other bookings for the selected date and also flag the user if a duplicate booking is created.	Yes	System warns call taker in case of duplicate bookings.
g.	The screen will auto-populate from the client record the following information (if present): default pickup address, comments, phone number, default drop-off address, mobility aid(s), excluded vehicle types, service type, provider, transport modes, passenger type, passenger count, space type, fare type, additional passengers, funding sources.	Yes	Comply to all; when call-takers enter the client ID or name, all other information will automatically populate from the client profile.
h.	Trip Booking screen will also contain the following optional fields: Booking Purpose, Booking type, Max OBT, scheduling comments & any user-defined fields.	Yes	Comply to all. Remarks can be added for pickup remarks, drop-off remarks, or in extra trip information field. Additionally, custom attributes can also be configured to categorize and associate information to a booking.
i.	Fields can be rearranged, removed, added, and made mandatory using a screen customization tool.	Partial	The call taker screen allows collapsing and expanding of several reservation fields. Auto collapsed sections are optional fields and can be skipped for most reservations.
j.	The screen will display recent bookings taken by the client to allow for quick entry.	Yes	The call taker screen shows addresses from the most recent reservations made by the client. Additionally, points of interest can be selected for quick entry of addresses.
k.	The screen will allow for address entry, and using a base map will locate and geocode matches using the methods described in the GIS section.	Yes	Complies, all addresses in the system are geocoded.

12. Single Booking Scheduling

a.	The screen will allow for new legs of the booking to be created in a single click while saving the portion (s) already completed.	Yes	The system has a copy function to create new bookings based upon existing ones. Additionally, when booking a trip, multiple legs can be added and each leg will be added in the system as an individual trip for routing.
b.	At the end of the creation, process booking can either be saved to schedule later or scheduled in real-time.	Yes	Confirmed, IT Curves' system allows both advanced scheduling based on existing trips and real-time demand-response services.
c.	The date of booking can be changed at any time during the booking process if the wrong date was initially selected.	Yes	Date can be changed even after reservation process is completed and saved.

d.	Origin to destination distance will be calculated & displayed automatically.	Yes	The system calculates the distance and time based on geolocation and the mapping software.
e.	Ability to copy a single booking to another day.	Yes	Complies.
f.	Users will be able to schedule all booking legs simultaneously or schedule legs one by one.	Yes	Users can schedule multiple trips at once using the multi-leg feature. Bookings can also be added one by one.
g.	The following on-the-fly changes can be made within the solutions screen: Reset Scheduled. Times to requested, Search time window, parameters set, violations set, transport modes, max transfer, runs to search for a solution.	Partial	Requested pickup time and appointment time can be modified at any time. Additionally, constraint rules such as time window, service time, and more can be modified on a trip and funding source level. Max transfer and runs to search needs to be discussed to understand the operational procedure.
13. Subscriptions (Repeat Booking)			
a.	The system must allow for the entry of bookings that repeat on a calendar-based interval.	Yes	The system allows subscription trips with a date interval, 'never expire' and exceptions to omit bookings for a particular day i.e., holidays. The template is saved with a particular week schedule such as Monday-Wednesday-Friday on a recurring basis.
b.	All other booking processes will remain the same.	Yes	Complies.
c.	Subscription booking can have a specific beginning and end date or be left open indefinitely.	Yes	The system allows repeating reservations either indefinitely or up to an ending date.
d.	The ability to define: Group name, group travel calendar, group members, max members, same pickup – distinct drop-off, distinct pickup – same drop-off, same pickup – drop-off, group travel times.	Partial	The system allows the creation of standing routes. These standing route templates can be applied as whole or partially on demand for specific days. Standing routes can also be marked to auto expand on set days.
e.	Ability to book a group trip – distinct bookings are automatically created for each passenger in the group.	Yes	When a standing route is applied to a specific day, it creates individual trips for each rider in the route.
f.	Add/remove group members on the fly.	Yes	Standing routes can be modified at any time.
g.	Notification when group max is reached.	No	All vehicles are programmed with a vehicle capacity; this serves as the maximum capacity for the route assigned to the vehicle. Standing routes themselves are not restricted to allow max members, but feature can be added as route settings to define max trips per route.
14. Trip Notes Functionality			
a.	Ability to add custom or canned notes to trips	Yes	Complies.

b. Notes can be mandatory when: the trip is scheduled or canceled on the fly.	Yes	Complies.
c. Date stamp, user stamp, and all notes are visible.	Yes	Comply with all.
d. Permissions are available to set users that can add/edit/delete notes.	Yes	Complies.
15. Manual Scheduling Tool		
a. View all unscheduled or will-call trips in a list view.	Yes	The dispatch screen shows all scheduled trips for a particular day and can be filtered by status of the trip such as unscheduled/not routed, which will include will calls. The routing screen has all assigned trips in the top grid and all unscheduled trips on the bottom grid.
b. View a list of all trips and detailed information about runs.	Yes	Trips can be viewed in tabular format or on the map. Routes can be selected that show the stop order by scheduled time and the route path for all stops for a particular run.
c. View all or groups of runs at once.	Yes	Complies, you can view all or groups of runs. One particular run can be selected to display the route path, or you can decide to display all runs at once, including a simulation where you can play runs for a particular day with the time sped up.
d. Perform a quick client search to cancel or reschedule trips.	Yes	Complies, the screen can easily be searched or filtered to cancel or reschedule.
16. Communication Log		
a. Log all outbound and inbound message communication from MDT.	Yes	All messages are logged and history can be viewed.
b. Ability to filter by vehicle and message type.	Yes	Comply to all.
17. Map Frame		
a. View AVL data from AVL enable vehicles. Displays current location (refreshes at set intervals), speed, and direction. Can view single or all vehicles at once.	Yes	All required information is available on the Live Map as well as for the past data for playback purposes.
b. Contains the same map functionality as other screens, including zoom, pan, layer control, etc.	Yes	System integrates Google Maps for display purposes and several options on Google Maps can be used to change the layout, including other layers, zoom, pan, and more.
18. Reports Archive		
a. Keep a copy of all reports created by end-users with simple access to reopen.	Yes	System generates all reports from live data. Any report can be reopened at any given time.

b. Have a search capability to find a specific report with options to search by end-user and date range.	Yes	Users can search for report types and run them as necessary according to given parameters. The system can run a report by using filters or search criteria.
19. Reports Module		
a. The Ability to save Standard Reports onto a desktop for editing.	Yes	Reports can be exported and saved in PDF, Excel, CSV, or other standard forms.
b. The System must utilize a centralized data warehouse that integrates fixed-route and demand response reporting systems.	Yes	There are standard report templates and all reports are generated instantly. IT Curves will be happy to configure reports which can be set to run periodically and send notifications when completed and ready to download.
20. Reports Wizard Functionality		
a. The ability to generate a report with no technical experience.	Yes	IT Curves reporting system is very simple and with little knowledge user can generate and view reports.
b. Step by step guidance includes selecting fields, sorting, totaling & saving as a report in the report's library.	Yes	Reports have simple filter criteria. Pre-defined reports have existing template. For custom data export user has completed flexibility to add or remove different fields and then export to simple excel.
21. Additional Benefits, Features, and Functionality		
a. Vehicle Auto Swapping – dynamically assign vehicles based on need. For example, if a group trip needs a larger vehicle to accommodate all passengers, it can automatically be changed.	Yes	Any route can be assigned to a different vehicle. The system does not hard bind routes to vehicles, so route and vehicle assignment can be modified on the fly. All trips under the route are automatically updated and dispatched to the assigned vehicle.
b. Audit data cleanup – the ability to set up nightly jobs that clean up history tables to ensure they don't get too large and keep unnecessary data.	Yes	There are periodic and nightly jobs scheduled in the system which cleans those logs from the system which are not desired for any reporting purposes.
22. MDT Software		
a. Mobile Data Terminal compatibility is the vendor-provided in-vehicle software that can operate on a wide range of Android tablet models currently offered by standard consumer electronics suppliers.	Yes	Complies. The driver app is installed on off-the-shelf android tablets.
b. Once the MDT unit is powered up, it will automatically display a driver log-on form screen requesting the driver's identification number and the odometer reading.	Yes	Complies. The log on screen requires driver number and pin with mandatory odometer entry.

c. Drivers must log on to the MDT unit by entering their employee identification and the vehicle's odometer reading into the MDT unit.	Yes	Complies. The log on screen requires driver number and pin with mandatory odometer entry.
d. The MDT unit will validate the log-on information with the scheduling software.	Yes	Complies. The MDT is registered in the system and the system validates log in with pin.
23. Optional Extras		
a. Upon successful login, before the manifest is displayed, the MDT software shall display a pre-trip inspection screen filled in by the vehicle operator after conducting their pre-trip inspection of the vehicle.	Partial	Currently the inspection form is available for pre- and post- shift on the MDT application. IT Curves can add configurations to launch the inspection form by default right after login if the form is not already filled for the day.
b. Each vehicle can be assigned specific checklist types that contain sets of questions relative to the vehicle.	Partial	The inspection form is configured for the fleet and not for the specific vehicle. But there can be an option on the form to mark checklist item as N/A.
c. If the checklist login question is answered incorrectly, the system will deny the login.	Partial	Currently, the system allows users to bypass the pre- and post-route inspection, but IT Curves can add configurations to block the login process if pre-inspection is not completed correctly.
24. MDT Communication		
a. MDT and driver applications must be capable of visual and audible alerts to indicate incoming messages.	Yes	Comply with all. Alerts and messages are audible and messages have an unread indicator.
b. The system must have the ability to send overt emergency notifications.	Yes	Complies. A discreet emergency message can be sent to the dispatcher.
c. After the driver acknowledges an incoming message, it should be displayed on the MDT unit.	Yes	The MDT has a separate messaging tab which contains the history of all the messages sent during the operation day. Messages can be sent as a popup dialogue with audible cues and every message is available in the message tab after display.
d. The MDT unit should also be capable of allowing the driver to respond to a message.	Yes	Driver can use speech to text, select canned messages, or type to compose and send messages.
e. The dispatcher must be able to send a question that requires a yes/no answer from the driver.	Yes	Custom messages can be sent with yes, no, and cancel options. Drivers' responses are registered. Messages can be sent to one driver, a group of drivers, or broadcast to all drivers.
f. The MDT unit should send a message and notify the driver of the transaction's success or failure.	Yes	The MDT messaging tab displays the success or failure of the sent message. The message will reattempt to send until the systems are synchronized.

g. The MDT should allow the driver to select from a list of canned messages to send to the dispatcher. The canned message list should be configurable.	Yes	Complies. Canned messages are completely configurable by ACT staff.
h. The MDT unit should be capable of queuing messages in a buffer and repeatedly attempting to deliver them to the host application. Each message should be configured to attempt delivery indefinitely or attempt delivery only for a fixed period, after which the message will be discarded.	Yes	IT Curves' system monitors for synchronization; if a message is not confirmed as received, it will attempt to resend it until the system is synchronized. Scheduled messages can be set for delivery at a specific time of the day; if a driver is not logged in at that time, the system will send it once they are logged in, as long as the message is not past an expiry window.
25. Standard Paratransit Functionality		
a. The system should provide the paratransit operator with the option of downloading an entire day's manifest to the MDT or a rolling window of trips.	Yes	The system allows users to set a horizon window which by default hides later trips from the trip list manifest screen. Drivers can always expand the manifest to view their complete route for the day.
b. The MDT unit should allow the driver to scroll through the manifest up to the maximum number of transmitted trips determined by the paratransit operator.	Yes	Drivers may scroll on the trips list on the MDT to view all trips on the manifest.
c. The MDT unit must be capable of adding, updating, and saving new Paratransit trip data without Driver intervention.	Yes	Any additions or modifications to routes are sent automatically to the MDT; drivers do not need to take any action to accept the changes.
d. The MDT unit must provide drivers with a Manifest, Passenger/Trip Information, and trip performs screens.	Yes	Comply to all, these screens are all included on the MDT and driver app.
26. Manifest List Screen		
a. The MDT unit Manifest Screen must provide drivers with an overview of their manifest.	Yes	The top of the manifest display summary including information such as start and ending times, max capacity, total expected driven miles, and number of trips.
b. Additional trip message lines must be available by scrolling.	Yes	Complies.
c. All trips must be shown on display in ascending order of estimated times.	Yes	The device includes both stop view and trip view. The driver can choose the mode to view the trip list. Stop view is recommended when ride sharing.
d. After the driver has logged on to the system and received a Manifest, the MDT unit should update the manifest by inserting additional trips sent by the dispatch system. The MDT unit must insert trips in the order of their scheduled pick-up or drop-off times.	Yes	Additional trips are highlighted in different color on the MDT. All trips are always displayed per set stop order and/or scheduled times.

e. After the driver has logged on to the system and received a Manifest, the MDT unit should update the manifest by deleting trips that have been canceled.	Yes	Cancelled trips are automatically removed from the manifest.
f. The driver must access the trip perform screens from the manifest screen with a single keystroke.	Yes	Driver can access trip screens with a single finger tap on the device. The driver can easily return from the trip detail screen by pressing the back button on the device, and use the next or previous buttons to navigate between stops.
g. The driver must also access the Passenger/Trip Information Screen from the Manifest Screen with a single keystroke.	Yes	Driver can access trip screens, including Passenger Information and other screens, with a single tap.
27. Perform Screen		
a. Perform Screens should display a list of information requests to be completed by the driver and transmitted to the Paratransit Dispatch Software necessary to complete each Paratransit trip (each Pickup).	Yes	All the required information is passed along with the trip and display on the MDT.
b. After the driver has used the MDT unit to record a rider's boarding, prompts should pop up that must be filled in before the driver can return to any other screen.	Yes	Prompts can be programmed to appear at given times, such as a prompt to input the odometer reading or number of passengers at each stop.
c. Suppose the rider and trip numbers, the number of riders, attendants and companions, and fare amounts and types were in the original trip message transmitted to the MDT unit. In that case, the MDT unit must automatically place that information in the appropriate Form Screen fields. The driver should be able to edit this information once it is displayed on the MDT unit.	Yes	The MDT displays the passengers at each stop, their set fare/copayment, and other information. The driver can modify this information if required and allowed.
28. Data Messaging		
a. The following section describes the types of messages that the paratransit operator will likely be transmitting between the in-vehicle MDT devices (mobile data terminals) and the Paratransit Dispatch Software	Yes	Comply to all.
b. The MDT unit must be capable of sending predefined messages to the dispatcher.	Yes	Complies, predefined messages may be defined as needed.

c. The vehicle predefined messages must be managed in the dispatch application and transmitted to the vehicle. Upon log on, the canned message update will be viewable on the MDT.	Yes	Dispatch can configure predefined messages. All predefined messages configured by dispatch will automatically update and appear for selection on all MDTs on login. .
d. The vendor should be able to comply with the following messaging requirements: • Trip Messages • Driver Log On • Driver Log Off • Pick Up Site Arrival • Pick up site Performed • Drop Off Site Arrival • Drop Off Site Performed • Additional Rider Boarding	Yes	Comply with all. Each driver action is recorded in the dispatch system with timestamp and GPS location as reported by the MDT. Dispatch software allows reports on the complete trip history and driver's login reports for auditing and reporting purposes.
29. Trip Update Notifications		
a. The system must provide automatic Trip Update notifications to the client the day before their scheduled trips if any of their estimated time of arrivals for the next day has changed by more than System must provide automatic Trip Update notifications to the client the day before their scheduled trips if any of their estimated time of arrivals for the next day has changed by more than 20 minutes from the original negotiated time. During a voice call update, the client shall have the option of canceling or confirming their trips for the next day.	Yes	IT Curves' dispatch system has a feature rich roll call messaging and notification system. The system allows users to configure notifications by text, phone call and email. Notifications include, but are not limited to, schedule time after manifest is built, driver in route, driver arrival at location, trip cancellation, forecasted delays, and more.

Exhibit E: Maintenance Plan (proposal Section 8)

IT Curves offers its own managed high availability computing cloud with periodic full back up and every hour incremental backup. Backups are stored in separate locations in case of disaster, The IT Curves cloud hosting is secured with proper firewall and compliance with modern security requirements. There is no need for on-site maintenance at Allegany County.

The network operation center continuously monitors all network elements and schedules maintenance as needed. In addition, the network operation team performs quarterly routine maintenance on all servers and other network equipment. These services are carefully planned to not cause any interruption to our customers. Should some interruption be necessary, the network operation team will notify affected customers and arrange for service to occur during off-peak hours.

The release management team and onsite support team make the schedules for releases to add updates to and maintain the software. Releases are conducted in a carefully monitored and supervised process. The team makes sure that there is absolutely no loss of data and the maintenance time is always scheduled for off-peak hours.

IT Curves commits to the highest level of maintenance and support throughout the life of the contract. The costs of maintenance and support are included in the Price Proposal.

Support Plan

We offer standard technical support from 8AM to 8PM East Coast Time. We provide support both by phone and through the ticketing system built into the software. We also offer 24-hour emergency support for business-impacting issues according to the following schedule:

Problem Category	Example	Response time	Resolution Time
Critical - Business Impacting	Network down with no work around	1 hour	4 hours
Major - Partial Service Issues	Certain modules or parts of the network are showing issues, but there is a temporary measure that will last until the next day	4	Next day
Minor - Localized Issues	Problem with certain features impacting full capability	4	Next business day
Trivial - Wish List or Enhancements	Minor inconvenience, cosmetic change, or reconfiguration of software features	9:00 AM to 5:00 PM East Coast Time	As agreed with customer for delivery

IT Curves provides phone support for both standard and emergency support.

The best way to work with our customer support is for customers to issue their own tickets on IT Curves' customer ticketing system. This system allows customers to enter their own work tickets, attach documentation, and track the progress of tickets from issue to completion. The screen shot below shows IT Curves' ticket management system. Customers have access to only their own tickets.

Exhibit F: System Installation and Implementation (Proposal Section 6.5 to 6.8)

6.5. System Installation and Implementation

Our usual schedule for implementation includes the following steps if IT Curves is selected:

- Week 1 – Initial Meetings: meet on site, review operation process in detail, collect data files.
- Week 2 to 5 – Configuration and System Setup: create cloud server with staff access rights and data, configured with the input of operations staff.
- Week 6 to 7 – Training and Testing: provide training on all systems to staff who will become the trainers of other staff. Begin testing processes with County staff to validate all functional requirements.
- Week 8 to 9 – Go Live: begin transition service to customer based on transition plan.

Nearly all the features requested by Allegany County in this RFP are available out-of-the-box from IT Curves, so we expect no major modifications to the software and therefore no development period. As a cloud-based system, minimal work will need to occur on-site and present operations can continue uninterrupted until the new system is ready for use.

The following diagram shows IT Curves' anticipated schedule for the major milestones in system delivery:

Milestone	Week								
	1	2	3	4	5	6	7	8	9
PHASE 1 - Discovery & Kick Off									
1.1 - Discovery									
PHASE 2 - Design & Build									
2.1 - Design									
2.2 - Build & Modify System									
2.3 - Materials & Equipment									
PHASE 3 - Deployment & Training									
3.1 - Staging & Installation									
3.2 - Training									
3.3 - Testing & Acceptance									
3.4 - Phased-in Cutover									
PHASE 4 - Post-Cutover Continuous Support									
4.1 - Continuous support for staff									
Project Management									
Occurs throughout all phases									
Weekly Meetings and Reports									

We also offer other installation schedules, including extended schedules which include trial periods for testing on small numbers of vehicles, an immediate cutover to transition all at once, and more pending agency preferences. IT Curves will work with Allegany County during the Discovery phase to determine the best installation schedule for your needs and preferences.

Our schedule, whether in the nine-week form or otherwise, includes the following major milestones:

Phase 1 – Discovery

- **Contract Execution:** IT Curves and Allegany County staff sign the contract agreement, thus commencing this process.
- **Initial Meetings:** To ensure that IT Curves meets all requirements and understands current operation procedures, IT Curves plans to hold a several on-site meetings with representatives from the Allegany County. We will use these meetings to:
 - Capture additional detail on project requirements and operational procedures related to programming ERSA for desired functionality, determining the desired standard reports, and more to complete a custom configuration of MRMS.
- **Site Survey:** During the Discovery period, the contractor will complete a site survey at ACT operations center to inspect the vehicles to plan the best mounts and required installation kits for both APC and MDT. Each vehicle type may require different mounts and installation kits.

Phase 2 – Design and Build

- **Update Project Plan Documentation:** Prior to the Kick Off Review, our staff will build the documents necessary for the Kick Off Review. Updates will be presented in the weekly reports and during related meetings.
- **Kick Off Review (KOR):** Within 10 business days of contract signing, IT Curves will present the results of the prior phase for the County's review at the KOR. The following documents will be included:
 - **Statement of Work:** This document will be an enhanced and more detailed version of this Scope of Work. It will include a detailed description of the IT Curves system and display its compliance with mandatory and desirable requirements.
 - **Project Plan and Schedule:** This document will be an enhanced version of this Project Schedule, including finalized details on dates, hours, and involved personnel pursuant to the reaching the Go Live date.
 - **Design Specifications:** This document will present the specifications we discovered during the Initial Meetings for County approval to begin programming the system according to the Scope of Work.
 - **Testing Plan:** This document will confirm the testing protocols desired by Allegany County to affirm the correct and expected functioning of the system by County staff, including the description of the reports which will be produced by IT Curves as part of the testing results.
 - **Migration Plan:** This document will detail the transition from the current system to the new one, with a focus on data transfer protocols.

- **Build and Modify System:** IT Curves engineers will install the system on our cloud according to the procedures described in the Design Specifications document, and Scope of Work. We will also begin importing and converting historical operations data received from the County.
- **Receive Data for Conversion:** An important part of the Initial Meetings is capturing the data from the old system to preparing it for conversion to the new system. IT Curves staff will determine the data to be transferred, create copies, write a Migration Plan, and begin using it to build the system during Configuration and System Setup. Due to the weeks between this data transfer and system go live, we plan on two data transfers during the process to integrate the data produced by the existing system during this installation and work plan, another occurring during the Phased-In Cutover.
- **Training Plan and Materials:** IT Curves will prepare a training plan and training materials specific to the City's system and operational procedures.

Phase 3 – Deployment and Training

- **Staging and Installation:** Our staff will fully test and validate the system ourselves during this period so that County staff can begin training on and testing the full environment during subsequent phases. We will also begin installing equipment and engage in the second stage of data conversion.
- **APC and MDTs Installation:** IRIS will install APCs into one or two vehicle per day in coordination with ACT project manager to avoid disruptions in service. Contractor will provide white glove installation of APC and MDTs using its professional and experienced installers.
- **Training of County Staff:** A formal on-site training period will be provided according to the Training Plan. IT Curves will train County staff in operational concepts, system architecture, and hands-on training with the tools and systems. It will employ a 'train the trainers' approach and include materials so that the trained staff will be able to train new dispatch, administrators, and drivers. If COVID-19 limitations are in place or if the County prefers, part or all the training can be performed via Zoom video conference.
- **Beta Testing:** After providing the customer with access to the IT Curves system cloud and training in how to use the system, a Beta Test period will begin. Beta testing includes test drivers, test customers, and office staff. The test will provide user feedback and ensure that all stakeholders are comfortable with systems operations. The Beta Test period can be extended to accommodate the design, implementation, and further testing of any modifications requested during this phase.
- **System Acceptance Testing:** In parallel with the training and Beta Test, IT Curves engineers and Allegany County staff will complete a formal Systems Acceptance Test which verifies that all requirements listed in the Statement of Work have been met according to the criteria of the Acceptance Test Procedure Document provided by the City.
- **Phased-in Cutover:** After successful completion of Beta Test and SAT, IT Curves will plan to perform the System Migration in phases while the IT Curves system works concurrently with the

County's existing system. This includes the final conversion of data, the initiation of the system for concurrent operation with the County's existing system, and finally the cease of operation of the previous system.

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Phase 4 – Continuous Support

- **Support:** ongoing support begins immediately after SCO. After final cutover, we will always be reachable through phone, email, and the ticketing system in the IT Curves software.

Weekly Meetings and Reports: Starting immediately after Contract Execution, IT Curves will produce weekly reports for the City's Project Manager, including updates to the Project Schedule as necessary. We will additionally lead meetings as necessary to discuss issue resolution, our adherence to the Project Schedule, and budget.

6.6. System Acceptance and Testing

As noted in Section 6.5. above, IT Curves builds several rounds of testing into our regular schedule of installation. Our goal, moreover, is to provide our clients with the tools and training necessary to determine the success of the system installation and its configurations. In the first phase, IT Curves will work with Allegany County to build a Testing Plan to be presented at the KOR, allowing the County to determine the schedule and testing reports. In the second phase, IT Curves installation staff will work with ACT to determine the protocols and specifications necessary to personalize MRMS for the County's needs. This process involves multiple rounds to ensure all specifications are understood. During the third phase, we install the system and train staff on its use prior to the testing period so dispatch and drivers alike know how the system should perform and can judge its installation accordingly. No phase may be considered completed without the active affirmation of Allegany County and its designated project manager or project management team.

IT Curves is committed to providing the highest level of service throughout the life of the contract. Should any operational defects or other issues which affect system performance arise, our staff is available 24/7 to address the issues as noted in Section 6.8. Maintenance and Warranty Plan.

6.7. Training and Documentation

Our trainers have experience with diverse groups and for many needs, and this wide experience has made them particularly effective trainers. IT Curves offers courses both online or in-person. These classes will be available during implementation from our expert trainers and installers for ACT employees.

After the end of the implementation and training schedule, these classes will remain available for your staff to take through online meetings with our training staff. IT Curves will be happy to provide as many classes are necessary, priced according to the costs listed in the Cost Proposal.

Course	Duration (Hours)	Method	Description
CONOP01	4	Class+ Slides Or Video	System Architecture: number of modules, descriptions of each module's function.
CONOP02	2	Class+ Slides Or Video	System Settings: Customization parameters, system attribute settings. Emphasizes attributes / parameters most applicable to ACT operation.
CONOP03	2	Class+ Slides Or Video	System Menu: Covers menu and submenus for high level navigation of the menu system.
Client001	2	Class+ Slides Or Video	Client Registration: Client on-line registration process, on-line submission of required documents, eligibility verification and approval. Optional if riders' applications are processed using the IT Curves Eligibility system.
Client002	2	Class+ Slides Or Video	Client Update: Client profile updates, notifications, and approval.
Client003	2	Class+ Slides Or Video	Client Rider ID, Password: Client Rider-ID assignment, self-service client portal, and password settings; using the client portal for booking, history, trip information, trip receipts, and funding accounts.
PAY001	2	Class+ Slides Or Video	Client Payment Management: Using account for payment via credit card, gift card, client on-line refill accounts, or other special payment cards.
PAY002	2	Class+ Slides Or Video	Office Payment Management: ACT staff view; audit client payments, add funding, refill client wallet.
Tel001	2	Class+ Slides Or Video	IVR Usage: Rider-ID usage for use of interactive voice response, voice recognition. Receiving ETA and trip information via IVR.
CRM001	2	Class+ Slides Or Video	Call Center: Integrated telephony system usage for ACT call center; previous trips and standing orders.
Route001	2	Class+ Slides Or Video	Route Building Concept: Defining regions, service providers, route builder depots, vehicle capacities, and hours of operation.
Route002	2	Class+ Slides Or Video	Pre-Built Route: Build and maintain pre-built routes, subscription routes, and special purpose routes.
Route003	2	Class+ Slides Or Video	Route Prior to Operation: Building routes prior to day of operation; building routes over existing subscription routes
Route004	2	Class+ Slides Or Video	Dynamic Route Builder: Modifying routes while routes are in progress; add and remove trips.
Route004	2	Class+ Slides Or Video	Route and Driver: Communicating routes to drivers electronically; viewing driver actions as route is in progress.
Driver001	2	Hands on	Register Device: Driver device registration, driver device menu system, and menu navigation.
Driver002	2	Hands on	Login and use of Device: Login, receiving route manifest, navigation to pickup and destination, client call out, and receiving communication from office.
Driver 003	2	Hands on	Route Management: Reading and using the route manifest, recording driver actions, and responding to dynamic routes.

Driver 004	2	Hands on	Payment in Vehicle: Payment via credit card in vehicle, payment via special cards, cash payment, and payment reconciliation.
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Copies of all training documentation will be provided to Allegany County for your future use. Our trainers will remain available for additional sessions at the request of Allegany County Transit, and our support team can similarly guide staff through solutions to common problems.

Exhibit G: Optional features and prices selected at the time of contract

COUNTY has selected to adopt the following three options as provided in this Exhibit G as a part of initial delivery:

1. Additional Prices for options (One-time Fees)

\$11,000.00

These fees include

Option 1: PAM (Phone Assistance Machine)	\$4,500.00
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Option 2: SAM (Schedule Announcement Machine)	\$2,000.00
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Option 3: Eligibility System	\$4,500.00
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Implementation and training services included

Hardware requirements	None
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2. Monthly Recurring Fees for Selected options

\$200.00

Option 1: PAM (Phone Assistance Machine) –	\$100.00
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Includes unlimited inbound calls & 1000 outbound calls/month

Option 2: SAM (Scheduling Announcement Machine)	\$100.00
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Includes unlimited inbound calls & 1000 outbound calls/month

Additional outbound calls over 2000 outbound calls	\$15 per 1000 calls
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Option 3: Eligibility System	No changes
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3. Payment Milestones for Selected Options: One-Time Fees

Item	Invoice date	% Of total	amount
Effective Date of Contract	EDC	50%	\$5,500.00
Cutover	EDC+9	50%	\$5,500.00

4. Payment Milestones – Monthly Recurring Fees

Item	Invoice date	amount
Fixed monthly -Phone lines Unlimited inbound calls 2000 outbound calls	End of each calendar quarter	\$600.00
Additional Phone services \$15 per 1000 additional call over 2,000 included outbound calls	End of each calendar quarter	Based on usage

Option 1: PAM (Phone Assistance Machine)

This enhanced system is designed to perform similar functions to the Rider App via a telephone system. PAM is an IVR system working alongside Allegany Transit's current phone system. The description is as follows:

1. It improves the current call center phone system as it operates concurrently with the existing system; no changes to the previous system are required.
2. IT Curves provides a second local Allegany Phone number, or if the County would prefer a 1-8xx-xxxx number, SIP Trunk is required to run PAM.
3. PAM performs many functions of the rider app for those riders who do not have a smart phone or do not know how to use the app. The riders who prefer to call-in may utilize PAM for the following functions:
 - a. Rider calls Allegany line; call is transferred to the PAM line.
 - b. PAM Welcomes the rider to Allegany Transit right away and searches the riders' records by their "Caller ID". PAM then greets the rider by his/her name.
 - c. If PAM can't find a rider's records by their "Caller ID", then PAM responds with, "I am sorry, I cannot locate your records by your phone number, would you please enter your Rider ID using your phone keypad." After the rider enters his/her rider ID, PAM proceeds to search the riders' records by ID to locate their profile and greet them by name.
 - d. If PAM was unsuccessful to find the rider's records, it then asks the rider to hold as they are transferred to an agent; system proceeds to call the existing call center phone line to connect to an agent.
 - e. If PAM succeeds in identifying the rider (PAM can identify most riders), it then greets the them and proceeds to search for current reservations automatically, with status messages such as
 - I. Ms. Smith, I found your trip for [today] at [11:30] from [Pickup address] to [Drop Off Address]. Your trip is currently assigned to vehicle 1121. The ETA for arriving at your pickup is 12 minutes.
If you wish to talk to an agent, please press 0, if you wish to cancel this trip, please press 2, otherwise hang up now.
 - II. Ms. Smith, your trip for [June 29th] at [11:30] from [Pickup address] to [Drop Off Address] is currently not assigned to a vehicle please call later for status of your trip.
If you wish to talk to an agent, please press 0, if you wish to cancel this trip, please press 2, otherwise hang up now.
 - f. Caller may press 0 at any time and call is transferred to Allegany's call center.
4. Please note that IT Curves will work with ATC to design these messages for you.
5. Please also note that all phone dialog messages may be entered or modified by your staff as text via a built-in text editing utility page.
6. You could also choose multiple languages; PAM can speak other languages. Please see the screen shot below showing how system flexibly allows the county to configure the IVR menu and how it supports multiple languages.

IVR Usage Summary IVR Templates IVR Disable Options									
Select Translation	Spanish								
MenuType	Chinese								
	Arabic								
	Tagalog								
	Vietnamese								
	French								
	Korean								
	Russian								
	Haitian Creole								
	Hindi								
	Portuguese								
	Italian								
	Polish								
	Urdu								
	Japanese								
	Persian								
	Gujarati								
	Telugu								
	Bengali								
	Greek								
Customer		[CustName], thank you for calling [QDispName].. [DetailMenu].	Hola [CustName], gracias por llamar a [QDispName].. [DetailMenu].	200	☒	☒	5	1	
Customer		[INI] for activating your trip from [PUAdd], to [DOAdd] reserved for [PUDate].	Presione [INI] para activar su viaje desde [PUAdd], a [DOAdd] reservado para [PUDate].	136	☐	☒	5	0	
Customer		[INI] we are unable to activate your trip right now. Please stay online to agent.	Lo sentimos, no podemos activar tu viaje en este momento. Permanezca en línea para hablar con un agente.	38	☐	☒	5	0	
Customer	Activate Will Call Main	Please, [DetailMenu] Press 8 to go back to main menu. Please stay on line to repeat message or hangup.	Por favor, [DetailMenu] Presione 8 para regresar al menú principal. Permanezca en línea para repetir el mensaje o cuelgue.	36	☐	☒	5	3	
Customer	Activate Will Call Success	Your trip from [PUAdd] to [DOAdd] reserved for [PUDate], has been activated successfully. Your pickup time is [PUTime]. Thank you for riding with [QDispName].	Tu viaje desde [PUAdd] a [DOAdd] reservado para [PUDate], se ha activado con éxito. Su hora de recogida es, [PUTime]. Gracias por viajar con [QDispName].	37	☐	☒	5	0	
Customer	ActivateWillCall	Press 6 to activate will call trip.	Presione 6 para activar su viaje de llamada.	27	☐	☒	5	3	
Customer	Block Trip Status Call Out Success	Your phone number has been blocked for Trip Status Call Out, thanks for updating.	Su número de teléfono ha sido bloqueado para la llamada de estado del viaje, gracias por actualizar.	35	☐	☒	5	0	
Customer	BlockPhoneNumberTripStat...	Press 5 to block Trip Status Call Out.	Presione 5 para bloquear la llamada de estado del viaje.	29	☐	☒	5	0	
Customer	Book A New Trip	To book a new trip, press 1.	Para reservar un nuevo viaje, presione 1.	203	☐	☒	5	3	

Optional Items (Section 3 from RFP Response)

Customer Optional Items (One-Time Cost)

Telephony System - Interactive Voice Response
*IT Curves will furnish SIP Trunk and Call Transfer

Per
Site/Account

\$4,500

Monthly Service Subscription for Feature Hosting & Service Usage

Monthly for Inbound calls and line hosting

Per
Site/Account

\$100.00

Monthly outbound transferred calls
*1000 transferred calls included

Per 1000 calls

\$15.00

Option 2: SAM (Schedule Announcement Machine)

This system is designed to keep riders informed about their scheduled pickup time, alerting them of any potential delays due to unforeseen circumstances on the day of operations. This feature is very useful as it operates independently while a busy dispatch center is assigning routes and vehicles per rider's requests. It is not always guaranteed that the rider's pickup time accurately matches with the request time. Furthermore, during the day of operation there are always unforeseen circumstances which offset the scheduled time of the rider, and causes them to panic if vehicle is not arriving on time. SAM proactively inform riders for their scheduled pickup time after the route assignment is completed. SAM also informs the rider for forecasted delays if the estimated arrival time of a vehicle is expected to be delayed above certain tolerance threshold. This feature is described in detail as below.

1. SAM enhances the current call center phone system as parallel system. In this phase it does not require any change to the existing phone system integrated with County's phone system.
2. IT Curves will provide a second phone number with a local Allegany County number, and alternatively if you wish 1-8xx-xxxx number. IT Curves will utilize same SIP Trunk as setup of Allegany PAM operation.
3. SAM performs many of the rider's app functions for those riders who do not have smart phone or do not know how to use the app. Riders who prefer to utilize the phone system can receive voice notifications from SAM.
4. After the route planner is done routing the next day's schedule, SAM allows the route planner to issue Robo call notifications to the riders.
5. SAM gets the list of the requested notifications and validates the phone numbers available in the client profile.
6. SAM attempts to perform an outbound call to the Rider's phone and ensures that either the call is answered or the system will leave a voice mail.
7. SAM leaves a pre-recorded message with additional information i.e., schedule pickup time and assigned vehicle/route information.
 - a. SAM also provides an option to the rider to unsubscribe from this service.
 - b. SAM allows rider to setup 'do not disturb' hours
8. During the operation day, if there are any forecasted delays more than the set threshold, then SAM automatically calls riders and lets them know their new scheduled time.
9. Notifications are configurable and IT Curves will work with client to configure these messages.

New: Additional Optional Items		
Customer Optional Items (One-Time Cost)		
Telephony System - Outbound Voice Call Notifications *IT Curves will furnish SIP Trunk for outbound calls and agent transfer	Per Site/Account	\$2,000

Monthly Service Subscription for Feature Hosting & Service Usage		
Subscription for outbound calls	Per Site/Account	\$100.00
Monthly outbound call out notifications *1000 outbound calls included	Per 1000 calls	\$15.00

Option 3: Eligibility Subsystem

Eligibility Subsystem will work as described in the technical response of the RFP under sections **“Configurable Eligibility Paratransit System”**. IT Curves eligibility system allow Allegany County Transit to maintain all eligible riders and programs under the eligibility system. This system will allow online reservation, call center and smart phones booking application to authenticate riders to make reservations. Currently Allegany County Transit’s call center is booking trips for riders based on call agents’ discretion and is prone to human error. Eligibility system will ensure that if the funding source required pre-registration of the rider, then does not allow them to book trips for the individuals which are not already registered and approved by the Allegany County Transit. Following are the main features or eligibility system.

1. Program’s definition along with program rules i.e.,
 - a. Program’s service area
 - b. Program’s trip limit
 - c. Program’s funding wallet
2. Online application custom design.
3. Paperless online application submission for program subscription.
4. Application life cycle process i.e.,
 - a. Submission
 - b. Approval or Rejection
 - c. Application return for additional information
 - d. All electronic email-based communication
5. Call center rider’s authentication for program eligibility at time of reservation.
6. Smart phone booking application rider’s authentication for program eligibility.
7. Riders’ authentication program eligibility for Online Web/PC reservation.

Section 3: Optional Items		
Customer Optional Items (One-Time Cost)		
Eligibility Subsystem Online Application, Approval, etc. *Primarily needed for rider authentication for program-based reservation via call center	Per Site/Account	\$4,500